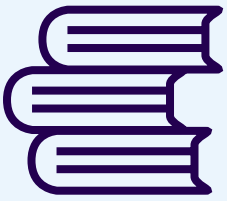
International Labour Organization







Access to labour justice: Comparative law and practice on labour disputes prevention and resolution







Access to labour justice: Comparative law and practice on labour disputes prevention and resolution

Labour Law and Reform Unit
Governance and Tripartism Department

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Foreword

The most recent Report of the Director-General of the International Labour Organization (ILO) to the International Labour Conference focuses on the need for greater social justice globally and the means to achieve it. The Report emphasizes that, "...while it may seem to go without saying, it [social justice] is about the rule of law and access to justice within a society." Access to labour justice is therefore clearly acknowledged as a key dimension of access to social justice. Strengthening and supporting labour dispute prevention and resolution institutions is hence an important priority for the ILO.

Irrespective of the nature and underlying reasons for individual or collective labour disputes, effective labour dispute prevention and resolution institutions to address them are a critical aspect of labour market governance. Countries across the world have organized labour dispute prevention and resolution systems, within and outside the scope of their ministries of labour, to maintain harmonious and productive work environments while safeguarding the rights and interests of employers and workers. While United Nations agencies provide extensive guidance on access to justice under Sustainable Development Goal 16 emphasizing that conflict, insecurity, weak institutions and limited access to justice remain a great threat to sustainable development, the ILO's approach is to focus on responding to access to justice related challenges in the world of work.

Regulation of labour and employment relations, and industrial relations systems, often develop in close relation to one another, and thus these legal and institutional linkages impact labour dispute prevention and resolution mechanisms. The present report acknowledges these mutual influences and provides a comparative analysis of the varied regulatory and institutional arrangements that play a role in labour dispute prevention and resolution. Through an overview of the legal, institutional and procedural frameworks governing labour dispute resolution in a variety of countries, this report notes commonalities and differences across systems, in law and practice. The overarching research question of which dispute resolution mechanisms work best in different contexts, and why, guides the analysis. It is hoped that the information and analysis presented here can guide policy discussion.

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Geneva, September 2023

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Contents

Foreword III

Acknowledgements IV

1. **Introduction** 1

Dispute resolution in a changing labour market context 3

This report's terminology and caveats 4

2. **Legal and regulatory frameworks governing labour dispute prevention and resolution** 7

Defining individual and collective labour disputes 7

Ensuring inclusion: Who is covered? 10

Explicit legislative exclusions 10

The boundaries of the employment relationship and access to labour justice 13

The material scope of labour disputes 14

Conclusion 15

3. **Labour dispute resolution institutions and mechanisms** 17

The functions performed by labour dispute resolution institutions 17

Adjudication: Judicial and quasi-judicial institutions 20

Judicial institutions 20

Quasi-judicial institutions 25

Alternative dispute resolution: Non-judicial institutions and labour administration 28

ADR and labour inspection 32

Other institutional arrangements 32

Conclusion 34

4. **Procedural aspects of dispute prevention and resolution** 37

Voluntarism in resolving labour disputes: Compulsory and voluntary procedures 40

Processing applications for dispute resolution: Accessibility and speed 43

Admissibility of claims 43

Case management systems 45

Timelines 45

Costs and fees 46

Procedural fairness in resolving disputes 47

Representation in proceedings 47

The burden of proof 49

Right to appeal 50

Enforcement 51

5. **Conclusion** 52

Chapter 1.

Introduction

Labour disputes—both individual and collective—are an inevitable feature of work environments. Efficient and accessible labour dispute prevention and resolution systems that can resolve conflict in a fair and timely manner are essential to harmonious industrial relations. Access to labour justice is an essential building block of social justice itself. Target 3 in Goal 16 of the 2030 Sustainable Development Agenda is "Promote the rule of law at the national and international levels and ensure equal access to justice for all". Target 6 has "Develop effective, accountable and transparent institutions at all levels", and Target 7 "Ensure responsive, inclusive, participatory and representative decision-making at all levels". While much of the academic literature and many international normative documents focus on access to justice in general, pre-conditions for effective and inclusive access to labour justice have been examined to a lesser extent.

Undoubtedly, effective labour prevention and resolution institutions cannot be taken for granted. Challenges of accessibility, independence and accountability, scarce resources, complex procedural requirements, and inadequate remedies continue to plague labour dispute prevention and resolution systems around the world. Moreover, it is crucial that such systems allow space for labour dispute prevention and the voluntary resolution of disputes through genuine social dialogue among the social partners.[1] This report provides an overview of the law and practice related to labour dispute prevention and resolution—judicial and non-judicial—in a wide variety of Member States of the International Labour Organization (ILO).

The primary focus of this report is a comparative analysis of law and regulations, as well as institutional arrangements and their role in the effective functioning of labour dispute prevention and resolution systems, in law and practice. The report highlights the commonalities and differences across the legal and regulatory, institutional and procedural frameworks governing dispute prevention and resolution mechanisms in the countries under study. It reviews how labour disputes are defined across jurisdictions, their legal and material scope, the mandate and composition of dispute resolution institutions, and how procedural matters that govern dispute handling —including whether processes are mandatory or voluntary. As an important element of their effectiveness, the report also addresses how such dispute prevention and resolution institutions manage their finances and the concomitant role of the social partners in their design and operations. In short, the report seeks to contribute to the existing guidance at the international level on access to justice by bringing in the labour dimension and the perspective of the world of work.

The methodology to prepare this report entailed using data from three sources: country studies prepared by national experts, in-house desk research, and information gathered with the new ILO diagnostic tool[2] in selected countries. For developing this report, a range of jurisdictions were chosen to represent a diverse number of legal systems—Member States at varying levels of economic and human development and in different geographical regions. The report encompasses comparative data on individual and collective labour disputes, and primarily addresses state-provided mechanisms for judicial and non-judicial labour dispute resolution. It does not address enterprise-level mechanisms for grievance handling or workplace cooperation. Privately established mechanisms for dispute resolution and procedures instituted by collective agreements are addressed briefly in contexts where they are prominent.

1 See also ILO, *Social Dialogue: Recurrent Discussion under the ILO Declaration on Social Justice for a Fair Globalization*, Report VI, International Labour Conference, 102nd Session, Geneva, 2013, paras 132–139.

2 ILO, *Access to labour justice: A diagnostic tool for self-assessing the effectiveness of labour dispute prevention and resolution*, 2023.

The present report aims to analyse and respond to the research question "Which dispute resolution mechanisms work best in different contexts and why?" as requested by the ILO tripartite constituents.[3] The 2013 Resolution concerning the recurrent discussion on social dialogue called upon the ILO to expand its assistance to strengthen and improve the performance of labour dispute prevention and resolution systems and mechanisms, including the effective handling of individual labour complaints through research, expert advice, capacity building and exchange of experience.[4] These outcomes were endorsed in the *Plan of Action* of follow-up to the discussion on social dialogue at the 102nd Session of the International Labour Conference (2013) adopted at the 319th Session of the Governing Body which required the ILO to generate research on labour dispute resolution to increase its capacity to provide effective technical advisory and capacity-building services.[5]

During its 107th Session in 2018, the discussions of the International Labour Conference were informed by a background report which noted that Member States were facing myriad challenges to establishing and maintaining fair, effective and sustainable dispute resolution systems, particularly for individual labour disputes. The challenges, among other reasons, stemmed from unclear or inconsistent legal frameworks, multiple mechanisms or forums that created jurisdictional uncertainty and overlap, and the exclusion of those whose employment status was unclear.[6] The 2018 Resolution concerning the second recurrent discussion on social dialogue and tripartism[7] further called upon the ILO to strengthen dispute prevention and resolution systems, at various levels, that promote effective social dialogue and that build trust.

More recently, the Office's research has been reoriented towards the area of access to labour justice, with the objective of "improving access to labour justice by revising legal frameworks to extend and protect rights for all, streamlining procedures and reducing costs, and reinforcing the qualifications and capacity of all personnel in courts and institutions of dispute prevention and resolution".[8] The importance of the topic was reiterated by the 2023 Resolution concerning the second recurrent discussion on labour protection adopted by the International Labour Conference, which emphasizes access to justice, access to effective remedies, and dispute settlement in the quest to achieve inclusive, adequate and effective labour protection for all.[9]

In light of this, the Office launched the diagnostic tool[10] for self-assessing the effectiveness of labour dispute prevention and resolution institutions. The tool provides guidelines for a reflective process within judicial and non-judicial dispute resolution bodies, and aims to help governments and social partners identify potential opportunities and challenges for access to justice, and jointly address them. The tool defines a set of generally accepted principles of "effectiveness", which serve as assessment criteria: efficiency, speediness, accountability, accessibility, independence, impartiality, fairness, equality, professionalism and enforcement; and additionally with non-judicial institutions, voluntarism, confidentiality and prevention.

Aligned with this background understanding, the present report aims to fill an important knowledge gap in practical aspects of labour dispute prevention and resolution by attempting to identify and highlight good practices conducive to full and inclusive access to labour justice.

3 ILO, Conclusions concerning the second recurrent discussion on social dialogue and tripartism, International Labour Conference, 107th Session, 2018, points 3(j) and 5(j).

4 ILO, Resolution concerning the recurrent discussion on social dialogue, International Labour Conference, 102nd Session, 2013. https://www.ilo.org/wcmsp5/groups/public/---ed_norm/---relconf/documents/meetingdocument/wcms_223786.pdf.

5 ILO, Follow-up to the discussion on social dialogue at the 102nd Session of the International Labour Conference, 2013: Plan of action. Governing Body, 319th Session, Geneva, p. 3. https://www.ilo.org/wcmsp5/groups/public/---ed_norm/---relconf/documents/meetingdocument/wcms_222313.pdf.

6 ILO, Social dialogue and tripartism, International Labour Conference, 107th Session, 2018, para. 49.

7 Adopted at the 107th session of the International Labour Conference (June 2018).

8 ILO, Preview of the Programme and Budget proposals for 2022–23, GB.340/PFA/2, Governing Body 340th Session, Geneva, October–November 2020, p. 12.

9 ILO, Resolution concerning the second recurrent discussion on labour protection, International Labour Conference, 111th Session, 2023. https://www.ilo.org/wcmsp5/groups/public/---ed_norm/---relconf/documents/meetingdocument/wcms_886646.pdf

10 ILO, *Access to labour justice: A diagnostic tool*.

▶ Dispute resolution in a changing labour market context

Significant challenges have arisen in the context of access to labour justice, particularly triggered by recent disruptions to the labour market and changes in work organization. The use of open-ended or "standard employment relationships" has been eroded with increased prevalence of more flexible forms of contractual relationships for the performance of work.[11] This fragmentation of work relationships and the reliance of enterprises on a wide array of contractual relationships with providers has been termed the "fissuring" of the workplace in recent academic literature.[12] At the same time, labour market segmentation—in formal and informal wage employment, and in voluntary and involuntary self-employment—has long persisted in labour markets across the globe, particularly in developing economies.[13] The weak enforcement of labour market laws and regulations in the informal sector presents a fundamental challenge to ensuring workers' access to justice.

Thus, labour markets have been impacted by a number of challenges: informality, gender pay gaps, slowdown in productivity growth, barriers to labour market transitions. This has been coupled with changes in workplaces, job profiles, and the organizational structure of enterprises induced by new technologies, climate changes as well as sectoral shifts due to new demand. All of these trends have the potential to directly or indirectly impact access to justice, for employers and workers. Further, these long-standing problems were exacerbated during the COVID-19 pandemic. Informal workers were at a higher risk of job loss than formal ones throughout the pandemic, with informal economic units being at a higher risk of shutting down. Many workers were pushed into self-employment or own-account work to weather the financial crisis that resulted from the pandemic.[14] One of the notable emerging labour market trends, has been the expansion of work through digital platforms and mobile applications with the rise of the "gig" or on-demand economy.

These challenges to labour market regulation, old and new, have altered not just the organization of work processes but also *the relationship* between workers and employers.[15] The increasing diversity of work relations and workers' preferences, combined with the prevalence of individualized rather than collective work relations, make for a more complex environment in which to address worker discontent or grievances.

No single international labour standard directly addresses the issues of labour dispute prevention and resolution in a holistic and integrated manner. Existing standards lack detail in the guidance they provide, or provide only fragmented guidance.[16] The absence of a unitary approach to labour dispute prevention and resolution hinders the Office's capability to respond to the needs of Member States and social partners as work relations continue to evolve, and new issues emerge in workplace disputes. In the broader context of these new dynamics, this report presents a comparative analysis of how various policy and legal and institutional choices have affected access to "labour justice for all" in the countries under study, providing some initial lessons learnt about the working of labour dispute prevention and resolution systems to guide future policy discussions on this topic.

11 ILO, *Non-standa7rd employment around the world: Understanding challenges, shaping prospects*, 2016.

12 David Weil, *The Fissured Workplace: Why Work Became So Bad for So Many and What Can Be Done to Improve It*, 2017.

13 John Bennett and Matthew D. Rablen, "Self-employment, wage employment, and informality in a developing economy", *Oxford Economic Papers* 67 No. 2 (2015), pp. 227–244.

14 ILO, *World Employment and Social Outlook: Trends 2022*, 2022.

15 ILO, *World Employment and Social Outlook 2021: The role of digital labour platforms in transforming the world of work*, 2021, p. 3.

16 ILO, Agenda of Future Sessions of the International Labour Conference, GB.344/INS/3/1, 2022, para. 71. https://www.ilo.org/wcmsp5/groups/public/---ed_norm/---relconf/documents/meetingdocument/wcms_838083.pdf.

▶ This report's terminology and caveats

Freedom of association and the effective recognition of the right to collective bargaining are both recognized as fundamental principles and rights at work per the ILO's 1998 Declaration on Fundamental Principles and Rights at Work.[17] These are critical rights that frame overall industrial relations systems in countries. At the outset, the report acknowledges the close relationship between labour dispute resolution mechanisms, on the one hand, and the broader industrial relations and legal systems in which they operate, on the other.[18] Indeed, it is the overall industrial relations environment that sets the tone for interactions between employers and workers in a particular jurisdiction, and it is the nature and characteristics of those interactions that can determine the preferred manner for handling disputes between them. A cooperative industrial relations climate and the use of consensus-based approaches can help prevent disputes, or at the very least prevent their escalation into strikes and lockouts.[19]

In a broad sense, then, a multitude of factors helps determine employer–worker relations and, by extension, the resolution of disputes that arise in the context of those relations. This context includes the *political environment*: whether freedom of association and the right to bargain collectively are recognized and whether labour market governance is inclusive and participatory; the *legal environment*: whether labour laws are supportive of freedom of association and collective bargaining and whether the scope of labour laws extends to all employers and workers; and the *socioeconomic environment*: whether the economy is weak or strong, whether production is labour-intensive, and what kind of sociocultural norms feature in conflict management.[20] One of the limitations of a comparative overview such as this is that time and space restrictions do not permit an analysis of each dispute resolution system in these broader political, legal, and socioeconomic environments.

More specifically, the present analysis excludes a discussion of the interactions between labour dispute resolution, on the one hand, and collective bargaining and industrial action, on the other. Undoubtedly, freedom of association and the right to collective bargaining imply the right of employers' and workers' organizations to engage freely in resolving disputes between them. The Collective Bargaining Convention, 1981 (No. 154) recognizes that "bodies and procedures for the settlement of labour disputes should be so conceived as to contribute to the promotion of collective bargaining". And in practice, the regulation of dispute resolution mechanisms can have implications for the exercise of the right of parties to engage in industrial action.[21] In our view, this aspect of dispute resolution merits a separate standalone analysis, but we do not venture to provide that in the present report.

Further—and importantly—the report recognizes that different legal systems tend to define the terms relevant to labour dispute resolution differently, which is to be expected across the wide range of jurisdictions covered here. Still, ILO publications have defined certain key terms and we acknowledge them upfront as guides to our overall approach (Box 1). Finally, while identifying shared values and common good practices, the present report also acknowledges the diversity of legal solutions and practices in different economic, political, social and industrial relations contexts.

17 ILO's 1998 Declaration on Fundamental Principles and Rights at Work: https://www.ilo.org/wcmsp5/groups/public/---ed_norm/---declaration/documents/normativeinstrument/wcms_716594.pdf.

18 Aristea Koukiadaki, "Individual and collective dispute resolution systems – A comparative review" (ILO, 2020).

19 ILO and International Training Centre of the ILO (ITC), *Labour Dispute Systems: Guidelines for improved performance*, 2013, p. 5.

20 ILO and ITC, *Labour Dispute Systems*, pp. 9–11.

21 Laws restricting or excluding public servants from the right to strike, particularly in the case of "essential services"; laws that distinguish between collective rights and interest disputes permitting industrial actions only in the case of interest disputes; and compulsory arbitration procedures before or during protracted industrial action.

▶ Box 1. Definitions of key terms according to ILO publications

- **Labour dispute resolution institution:** An organization that assists in the resolution of labour-related disputes. This term covers judicial and non-judicial institutions, including consensus-based and adjudicative bodies. It also covers, depending on the national context, a range of different arrangements including ministries and departments of labour (bodies within public-service national or state labour administrations), independent statutory bodies (bodies funded by the state but which operate with a degree of independence and autonomy), courts, and shared arrangements (where labour dispute resolution is partly the responsibility of the labour administration and partly that of an independent institution).
- **Collective dispute:** A disagreement between a group of workers usually, but not necessarily, represented by a trade union, and an employer or group of employers.
- **Individual dispute:** A disagreement between a single worker and his or her employer, usually over existing rights. It can also include situations in which a number of workers disagree with their employer over the same issue, but where each worker acts as an individual.
- **Interest dispute:** A disagreement between workers and their employer concerning future rights and obligations under the employment contract. Such disputes are not based on existing entitlements but rather the desire of one party to create new rights in the future, such as a higher level of wages and additional benefits. Interest disputes are directed to the creation of new rights and emerge as a result of a breakdown in collective bargaining.
- **Rights dispute:** A disagreement between a worker or workers and their employer concerning the violation of an existing entitlement embodied in the law, a collective bargaining agreement, or under a contract of employment. A confrontation sometimes referred to as a legal dispute. Such disputes can be either individual or collective.

Source: ILO and International Training Centre of the ILO (ITC), *Labour Dispute Systems: Guidelines for improved performance*, 2013

Chapter 2.

Legal and regulatory frameworks governing labour dispute prevention and resolution

This section presents an analysis of the legal and regulatory frameworks defining and regulating collective and individual labour dispute prevention and resolution mechanisms—judicial and non-judicial. Legal certainty is a critical factor in law-making and the upholding of the rule of law, and consequently it is of utmost importance in ensuring access to justice.[22] An effective labour dispute prevention and resolution mechanism contributes to the rule of law by facilitating equitable redress for disputes with appropriate enforcement mechanisms in place.[23] Such facilitating needs to be based on a foundation of systematic and clearly defined legal principles that serve to grant all employers and workers access to all these mechanisms.

The analysis here focuses on the legislative provisions that define individual and collective disputes, distinguish between rights-based and interest-based disputes, and provide for the legal basis upon which employers and workers may access labour dispute prevention and resolution mechanisms. The challenges in applying some of these provisions underscore the need for well-defined substantive rights supported by clear processes that grant access to appropriate and competent authorities.

Defining individual and collective labour disputes

The lack of legislative clarity on what the terms "individual labour dispute" and "collective labour dispute" encompass is a real concern as it may lead to ambiguity and inconsistent application of the law. Indeed, there is no one common approach to defining individual or collective labour disputes, and varying legislative solutions are applied in different countries, as seen below. The crucial question is whether such definitions, or their lack, improve or hinder the ability of an individual worker, employer, or organization of workers or employers to access dispute prevention and resolution mechanism. The terminology referring to labour disputes in the countries under study varies widely and is specific to each jurisdiction.[24]

22 Legal certainty is included in the UN Secretary General's conception of rule of law in the 2004 Report to the Security Council, *The rule of law and transitional justice in conflict and post-conflict societies: Report of the Secretary-General*, 23 August 2004, p. 4.

23 ILO, *Access to labour justice: A diagnostic tool*, p. 5.

24 For instance, it is "trade dispute" in Ireland, Kenya and Malaysia, "industrial dispute" in India and the Republic of Korea, and "labour conflict" in Romania.

In some instances, labour laws define labour disputes in general terms without distinguishing between individual and collective disputes.[25] For instance, a trade dispute in Ireland is defined as "any dispute or difference between employers and workers or between workers and workers connected with the employment or non-employment, or the terms of the employment, or with the conditions of employment, of any person and includes any such dispute or difference between employers and workers where the employment has ceased".[26] Although the parties to a "trade dispute" are here expressed in the plural, it is well established that the term includes disputes between an individual worker and his or her employer.

In India, an "industrial dispute" is defined similarly,[27] but while the Indian definition also reads as if only to include collective disputes, it does include some but not all individual disputes. Indian courts have interpreted the term to mean that any dispute espoused by a trade union or a substantial number of workers can be treated as an industrial dispute. An amendment brought by the Industrial Disputes Act[28] clarifies that any form of termination of services of a worker is to be treated as an industrial dispute, no matter that any other worker or trade union is party to the dispute. Indeed, a circumscribed definition such as this can limit the possible paths for redress in individual disputes (other than those related to termination) that are not taken up by a trade union or by other workers.[29]

Certain countries legislations examined, provide a clear definition in statute of individual *and* collective disputes,[30] numerous labour laws in this study have no specific statutory definition of labour disputes, whether individual or collective.[31] Where definitions are provided in the law, there are a few different ways in which we observe a distinction between individual and collective disputes. Frequently, this distinction follows closely the distinction between rights-based and interest-based disputes; individual disputes are taken to be those related to the exercise of an *individual right*, whereas collective disputes are associated with the pursuit or defence of a *collective interest*.[32] In other cases, the same distinction is not made explicitly in statute, but is implicit in how disputes are handled.[33] A few examples are observed of countries that distinguish between collective interest disputes and collective rights disputes.[34]

In countries where collective agreements serve as an important source of workers' rights, the distinction between individual and collective rights disputes can be blurred. For example in Sweden in many cases, a dispute regarding the rights of individual employees (that is, an individual labour dispute), simultaneously involves a breach of the collective agreement, which makes it a collective labour dispute. Hence, it is common that the same case is brought (by the trade union) both on behalf of the individual employee

25 As in Ireland, India, Brazil, Kenya, Bangladesh, Sweden, South Africa and the United Kingdom (UK).

26 See section 3 of the Industrial Relations Act 1946 as amended by section 40 of the Industrial Relations (Amendment) Act 2015.

27 Section 2(k) of the Industrial Disputes Act: "... any dispute or difference between employers and employers or between employers and workmen, or between workmen and workmen, which is connected with the employment or non-employment or the terms of employment or with the conditions of labour, of any person".

28 Section 2A, added in 1965.

29 For example, anti-union discrimination such as an unlawful suspension or transfer. See R. Gopalakrishnan and L. Tortell, "Access to justice, trade union rights, and the Indian Industrial Disputes Act, 1947", *International Journal of Comparative Labour Law and Industrial Relations* 22(4) (2006).

30 This is the case for instance in some of the West African countries studied including Burkina Faso, Niger and Togo, as well as Armenia, Bulgaria, Romania and Viet Nam.

31 For instance, in Germany, Lebanon, Mozambique, Argentina, Chile, Colombia, Malaysia, Albania no specific legal definition of "individual labour disputes" is provided, but the Labour Code provides a definition for "collective labour disputes".

32 As in Burkina Faso, Niger and Togo.

33 As exemplified in Ireland where no distinction is made between individual and collective disputes or between disputes of rights and interest. Disputes of rights are resolved on an individual basis (even if they are collective in nature) through adjudication. Interest disputes (whether individual or collective) are resolved though non-enforceable recommendations. A similar distinction is implicit to the systems in Germany, Lebanon, Republic of Korea, Brazil, Kenya, Colombia and Serbia.

34 Including Viet Nam, Montenegro, Panama and Mexico. In Mexico, the Federal Labour Act (FLA) states that labour courts resolve labour disputes—between workers and employers, between workers, or between employers—emerging from labour relations. The FLA identifies that disputes may be individual and collective (but does not define them), and that they may be resolved by ordinary or special procedure (the ordinary procedure is applicable to individual and rights disputes, with no special proceeding set out in the FLA; see Chapter VII and Chapter VIII of the FLA). Only collective disputes of an economic nature (per this report, "interest disputes") are defined as those with the purpose of modifying or introducing new working conditions or the suspension or the termination of collective labour relations and follow a procedure exclusively for these disputes, unless another procedure is stipulated in the FLA (Chapter XIX).

represented by the trade union and on behalf of the trade union itself, which means that the case cannot be categorized based on the distinction between individual and collective. The important demarcation in the Swedish system is between disputes of rights and disputes of interest, rather than between individual and collective disputes.

Another factor sometimes emphasized in the definition of individual and collective disputes is the *parties* to the dispute. Specifically, an individual dispute may be referred to as one between a worker and his or her employer, while a collective dispute may be described as one between a group of workers and either one or more employers.[35] In some instances, the definition may specify that the parties be a *workers' or employers' organization*. In Viet Nam, both rights-based and interest-based collective labour disputes are expressed in terms of "one or several workers' representative organizations and an employer or one or more employers' organization(s)", for instance.[36]

Finally, some definitions, specifically with individual disputes, tend to associate an individual dispute with the source of rights, based on which a dispute may arise: primarily this includes the individual employment contract and labour legislation setting specific standards of employment. For example, the Senegalese Labour Code defines individual labour disputes as disputes arising between workers and employers as pertaining to the employment contract; the apprenticeship contract; collective agreements; working conditions; social security; and hygiene, health and safety at work.[37] The existence of the individual dispute in Senegal is linked to that of the employment contract.[38] Conversely, few definitions of collective disputes are tied to the notion of disputes that arise in the context of the negotiation of a collective agreement.[39] For instance, when individual disputes are raised by a group of workers over the same right-related claim, in some jurisdictions such disputes are handled not as a collective dispute, but as a sum of individual ones.[40]

Hence we observe that individual and collective disputes may be legally defined and distinguished, emphasizing either one or various combinations of these three factors: the *nature of the dispute* (rights-based versus interest-based); the *parties to the dispute* (single or a group of workers or employers); or the *source of the rights* over which there is a dispute (the individual employment relationship versus collective agreements). In certain instances, individual disputes can be handled as singular disputes raised by the employee concerned, or as a sum of individual disputes raised by a group of employees.[41]

Of course, a legal definition may not in itself be important. Still, to the extent that it determines (or contributes to determining) the *procedural and institutional pathway* that a dispute follows, it is of great importance to the functioning of the system for such a definition to be clear and well understood. In Canada for instance, the emphasis is not so much on the legal definitions of individual or collective disputes but on whether workers are unionized or not. For unionized workers, dispute resolution is primarily through arbitration by independent arbitrators, whereas for non-unionized workers, a complaint may be filed with a Ministry of Labour Inspector or an application may be made to the Superior Court for relief. In general, therefore, classification of a dispute (or in this case, classification of workers) can sometimes be a crucial question in deciding whether an individual worker or employer, a group of

35 For example, Niger, Togo, Bulgaria and, for collective disputes, Albania.

36 Art. 179 of the Labour Code of Viet Nam. The Senegalese Labour Code (art. L.86) refers to collective labour disputes as disputes between organized labour and employers.

37 Art. 229.

38 This is also the case in Armenia and Argentina.

39 In Armenia, collective disputes are defined as disagreements between the trade union and the employer or other parties who are entitled to execute a collective agreement related to demands posed by one party and left unsatisfied by the other party. The demands in question must relate to the negotiations of a collective agreement, performance of the collective agreement, or to changes in the terms of a collective agreement or amendments of laws, or else to the establishment of new conditions of work (art. 64 of the Labour Code). This is also the case in Viet Nam where an interest-based collective labour dispute is a labour dispute that arises during the process of collective bargaining. In North Macedonia, a collective labour dispute, in the sense of the Law on the peaceful resolution of labour disputes is considered a dispute that rises from concluding, amending, supplementing, or applying a collective agreement, exercising the rights of trade union organization and strike.

40 Art. 164(1)(b), as opposed to "disputes arising from individual employment relationships" (art. 182(1)).

41 As in Canada.

workers, or an organization of workers or of employers has the ability or locus standi to submit a claim before a certain authority. This consideration must guide attempts at gaining legal clarity when defining individual and collective disputes.

Ensuring inclusion: Who is covered?

Explicit legislative exclusions

An important aspect of the legislative frameworks governing labour dispute resolution is the extent to which legal systems can include, and thus protect, the rights of *all* participants in the labour market to access mechanisms for the prevention and resolution of labour disputes. The direct and indirect exclusion of certain types of employers and workers presents a significant challenge to the effectiveness of national dispute resolution systems and the industrial relations system overall. Most often, as will be seen, it is the workers who are *explicitly excluded* from legal protection, and such workers tend to be those already susceptible to exploitation and facing significant barriers to protection and remedy.

Explicit legislative exclusions (for the purposes of this subsection) do not include exemption clauses in general labour laws in relation to workers subject to special regulatory frameworks and processes. Numerous labour codes and dispute resolution statutes examined in this study exclude workers such as civil servants, police and defence forces, armed forces, and seafarers,[42] for these reasons.[43] This is common practice across most of the systems analysed and in itself does not pose a challenge to industrial peace as alternative systems for dispute resolution—administrative/military courts or government-administered conciliation and grievance redressal—tend to be made available to these categories of workers. In some jurisdictions, these categories of workers are included in the scope of some employment legislation but subject to certain legal exclusions. In Armenia for instance, labour law fully applies to civil servants, but rules pertaining to collective relations (including collective agreements and collective disputes) do not apply to the armed forces, police, employees of the national security bodies, and persons holding public positions.[44] In other jurisdictions, civil servants are included in the labour code's scope of application, but higher executives of the civil service are excluded.[45]

Beyond these limited categories of workers who have access to other channels of grievance redressal, however, many of the labour laws in the countries reviewed explicitly exclude specific categories of vulnerable workers from their scope of application, leaving them with no means to access labour dispute resolution mechanisms at all—typically, domestic workers.[46] The Lebanese Labour Law specifically excludes domestic workers working in private houses, and relations between domestic workers and their employers are governed by a private contract with certain mandatory clauses imposed by the

42 In North Macedonia, the maritime personnel of merchant shipping companies, aircraft crew members and foreigners employed in passenger and railway traffic companies that have their registered headquarters abroad are excluded from the legal framework for labour dispute resolution.

43 Including Ireland, Germany, Lebanon, the Republic of Korea, India, Burkina Faso, Togo, Viet Nam, Mozambique, Mexico, Brazil, Montenegro, Kenya, Argentina, Chile, Colombia, Panama, Croatia, Bulgaria, Canada, Bangladesh, Sweden, Albania, China, Morocco, South Africa and Costa Rica.

44 In Ireland for example, police and defence forces in some cases, even if they fall in the scope of an act, are excluded from the dispute resolution process of that act (such as the Parental Leave Act, 1998). In Niger, workers in restricted areas of companies in the defence industry or affiliated with the military are within the scope of labour regulations, yet labour inspection services as well as the execution of labour regulations are conducted by personnel designated by military authorities. In Chile, Law No. 21.280 on the legal coverage of workers' human rights procedures includes civil servants in cases of human rights violations.

45 As in Senegal and Niger.

46 Including China, Malaysia, Lebanon, Brazil, Bangladesh and Canada (in some provinces, such as Ontario, New Brunswick, Alberta, Nova Scotia, and Prince Edward Island); conversely, domestic workers are included in the legislative framework in Ireland, North Macedonia and Morocco (based on country studies commissioned for these jurisdictions).

Ministry of Labour. Still, this arrangement leaves domestic workers in Lebanon in a precarious position, particularly as most of them are not Lebanese.[47] In some countries, domestic workers may be eligible for partial protection: in the Republic of Korea for example, domestic workers fall outside the purview of the Labour Standards Act (that is, the individual employment law) but are eligible for coverage under the Trade Union Act (that is, the collective labour law). Hence, it is feasible for domestic workers to establish and participate in a labour union, enabling them to engage in collective bargaining with their employers per the provisions in the Trade Union Act, and to access dispute resolution mechanisms thereunder.[48]

In contrast, Argentina provides an example of an entirely separate procedure for disputes arising between domestic workers and their employer. Domestic workers are regulated by a specific law[49] that establishes a Domestic Workers Court with a particular procedure. Per this procedure, before filing the claim, it is mandatory to submit the conflict to an administrative body under the structure of the Ministry of Labour for conciliation.[50] If the parties do not reach an agreement at that stage, the Domestic Workers Court must summon the parties to a hearing where the judge proposes the basis of a conciliatory agreement.[51] Yet in Mexico, Panama and Chile, for example, domestic workers are specifically included in the Labour Code.[52]

Exclusion from the scope of labour law and thus access to labour dispute resolution mechanisms also frequently arises for workers whose employer is entitled to claim sovereign or diplomatic immunity.[53] (But not always: Togo, for example, adopted a new Labour Code in 2021 and one of its most notable reforms is that it expressly includes employment relations between a worker and any employer who benefits from diplomatic or consular immunity.) In some countries, certain types of agricultural and rural workers are also explicitly excluded from legislative protection.[54] Less commonly are a few other categories of workers excluded from labour law protection: those working in export processing zones,[55] family workers,[56] workers in traditional microenterprises,[57] managerial and executive personnel,[58] and apprentices[59] and trainees. Conversely, a few express *inclusions* of workers in some labour codes pertain to foreign and/or migrant workers,[60] stateless persons employed with an individual employment

47 Historically, domestic workers have been subject to separate legal provisions primarily in the abusive *Kafala* (sponsorship) system. Some 250,000 migrant domestic workers are estimated to be working in Lebanon. More recently, Lebanon has taken steps towards dismantling this system through the launch of a revised Standard Unified Contract for domestic workers. https://www.ilo.org/beirut/media-centre/news/WCMS_755008/lang--en/index.htm.

48 Consequently, in the Republic of Korea, if a dispute of collective interest emerges during the negotiation process, mediation or arbitration procedures can be pursued as potential means of resolution, though instances of such mediation or arbitration remain scarce.

49 Law No. 26.844. The law includes in its scope personal assistance and support provided by family members or those who live at the same address as the employer, as well as the non-therapeutic care of sick or disabled people (art. 2, Law No. 26.844).

50 Art. 53, Law No. 26.844.

51 Art. 54, Law No. 26.844.

52 Arts. 230 and 231 of the Labour Code in Panama. Art. 146 of the Labour Code in Chile. For Mexico, see Chapter XIII of the FLA.

53 Ireland for instance.

54 Including Lebanon, Brazil, Bangladesh, Canada (Ontario, Alberta, Nova Scotia and Prince Edward Island). Agricultural workers are excluded from the scope of the National Labor Relations Act (NLRA) in the United States.

55 As in Bangladesh and India.

56 For example, Bangladesh, Albania and Morocco.

57 Including Morocco.

58 India for example, per section 2(s) of the Industrial Disputes Act, excludes those working in a managerial or administrative capacity. Supervisors and managers are excluded from the scope of the NLRA in the United States.

59 As in Malaysia.

60 Panama for example.

contract,[61] persons with refugee status with an individual employment contract,[62] apprentices[63] and members of cooperatives.[64]

Finally, two of the countries surveyed have criteria for workers' salary thresholds, which have consequences for workers' access to dispute resolution mechanisms (Box 2).

▶ Box 2. Salary thresholds

Until recently, under the Malaysian Employment Act, employees were covered based on earning thresholds (that is, those not earning more than RM 2,000) or based on the nature of their work (that is, those engaged in manual labour or the operation of mechanically propelled vehicles, irrespective of their earnings). The Director General of Labour could also deal with disputes in respect of employees who earn more than RM 2,000 but not more than RM 5,000 per month where their complaint relates to non-payment of wages or other payments due per their employment contract.[a] A definition such as this left those excluded by salary thresholds outside the Act's scope and hence without recourse to dispute resolution mechanisms other than those provided by the terms of their employment contracts. The Employment Amendment Act of 2022, which came into force on 1 January 2023, has now been amended so as to ensure that all employees are covered under the Employment Act, irrespective of their wages.

Salary thresholds in South Africa play a very different role—that of determining speedy access to dispute resolution mechanisms to low-income workers. The South African Minister of Employment and Labour has the power[b] to determine what is commonly called the "threshold amount"[c] as a proxy for the vulnerability of employees earning under this threshold. Labour legislation extends more rights to employees earning under this threshold than employees above it. Where there is doubt about the status of these employees and their right to protection, a presumption of employment[d] makes it easier to establish they are employees. Labour legislation also gives increased access to the Commission for Conciliation, Mediation and Arbitration (CCMA), which provides faster and cheaper access to labour dispute resolution than the Labour Court for employees earning under the threshold. For instance, whereas contractual claims usually have to go to the Labour Court/civil courts in South Africa, employees earning under the threshold may refer a contractual claim for an "amount owing" to the CCMA. Similarly, while unfair discrimination disputes usually go to the Labour Court, employees earning under the threshold may refer such disputes to the CCMA.[e]

a Michael Gay and Craig Bosch, Report on review of Malaysia's dispute resolution system, Geneva: International Labour Office, 2020.

b Under 6(3) of the Basic Conditions of Employment Act 75, 1997.

c Currently, 241,110.59 South African Rand per year.

d In section 200A of the Labour Relations Act 66, 1995 and in section 83A of the Basic Conditions of Employment Act 75, 1997.

e Section 10 of the Employment Equity Act 55, 1998.

61 As in Romania.

62 Including Romania.

63 As in Romania.

64 Again exemplified by Romania, on forming and joining a trade union, hence such workers have access to alternative resolution procedures as provided by law for collective disputes arising during collective bargaining.

The boundaries of the employment relationship and access to labour justice

With due cognizance of the above issues stemming from *explicit* legislative exclusion, some of the greater challenges to ensuring access to justice are created by *indirect* exclusion, owing to legislative definitions and requirements. Simply, many workers and some groups of employers[65] cannot meet minimum qualifying conditions for legal coverage. The labour laws examined in this study have a variety of legal provisions that establish a basis for applicability, and generally define parties to individual disputes as an employee or worker, on the one hand, and an employer, on the other. In the vast majority of jurisdictions surveyed—as well as in numerous other countries[66]—national labour dispute systems are accessible only to parties in employment relationships legitimized by employment contracts. In some instances, it is for the party seeking to access a labour dispute resolution mechanism to demonstrate the existence of an employer–employee relationship, or to show that the dispute falls within the scope of the given institution's jurisdiction.[67] Courts may, however, be empowered by virtue of a legal presumption of employment to address the issue of bogus self-employment at the time a dispute is raised.[68]

Such legal obstacles—created by reliance on the standard employment relationship as the sole gateway to legal protection—have been well documented.[69] In many cases, therefore, labour law generally provide for categories of workers who fall outside the traditional "employee" mould. In Ireland for instance, dependent self-employed workers are explicitly covered by some employment protection laws,[70] as well as by industrial relations legislation. Similarly in the Republic of Korea, there is a difference in the meanings of "employee" in individual employment law and in collective labour law, the former emphasizing personal subordination and the latter economic dependence. Thus, while dependent self-employed workers are not employees under individual employment law in the Republic of Korea, they may often be covered by the Trade Union Act. In Germany, independent contractors who are economically dependent on their contract partner[71] are considered "quasi-employees" and therefore have access to the labour courts when they have a labour dispute arising from their contractual relationship with their main customer. Similarly, some individuals and/or businesses may not be able to meet legislative requirements to qualify as employers. In the Republic of Korea once more, the Labour Standards Act provides some exemptions for a business or workplace that regularly employs no more than four employees,[72] although there were very few such cases in the legislations examined.

65 In most cases this refers to Small and Medium-sized enterprises.

66 Nicola Countouris, *Defining and regulating work relations for the future of work*.

67 Recent case law (2018 and 2014) in Kenya has held that "for one to access the jurisdiction at Employment and Labour Relations Court (ELRC) he must demonstrate that there exists an employer–employee relationship; that there is an oral or written contract of service or that the issue is a dispute falls within the provision of Section 12(1) of the ELRC Act".

68 For example, Panama, Colombia, Chile, Argentina, Mexico, France and Spain.

69 Nicola Countouris, *Defining and regulating work relations for the future of work*. See also ILO, 2006, "The employment relationship", Report V(1), 95th Session of the International Labour Conference, 2006, Geneva, ILO. On platform workers see Decent work in the platform economy: Reference document for the Meeting of experts on decent work in the platform economy (Geneva, 10–14 October 2022), p. 5.

70 For instance, the Terms of Employment (Information) Act 1994 and the Employment Equality Act 1998.

71 If at least 50 per cent of their income results from the corresponding contractual relationship.

72 Labour Standards Act, sections 11(1) and (2). For example, the requirement of "just cause" for dismissing or disciplining an employee under the Labour Standards Act of the Republic of Korea does not apply to businesses with fewer than five employees at any given time. In addition, the Labour Standards Act requires that overtime, night and holiday work be compensated with an additional payment of at least 50 per cent of the regular wage. It also provides for paid annual leave for eligible workers. However, again, these provisions do not apply to enterprises with fewer than five employees at any given time.

In some cases, a labour dispute may also occur between an employer and a person who is not, and never has been, employed by that employer. For example in Sweden, disputes between temporary agency workers and user undertakings over the application of legislation on temporary agency work are considered labour disputes under the Labour Disputes Act.[73] The same applies for discrimination cases, where the concept of labour dispute covers not only disputes between employers and employees, and between temporary agency workers and user undertakings; it also covers disputes between employers and jobseekers; persons enquiring about or applying for work; and persons applying for or carrying out a traineeship.[74] Disputes between employers and jobseekers are further considered to be labour disputes in cases concerning the prohibition against unfavourable treatment on grounds of parental leave.[75]

Beyond the employment relationship, the de facto exclusion from the operation of labour laws is often seen with undocumented migrant workers who are often excluded from labour laws and social welfare legislation.[76] In some cases, courts or authorities have stepped in to ensure access to dispute resolution procedures to migrant workers irrespective of their work permit or legal status. For instance, courts in the Republic of Korea have established that migrant workers, regardless of their legal status, are entitled to the same labour law protection as local workers, which includes the right to organize and form a trade union. Migrant workers are thus granted equitable and non-discriminatory access to dispute resolution mechanisms, encompassing both judicial courts and labour commissions. In contrast, a discernible regulatory approach can be identified in the labour laws of Central and Eastern European countries in relation to the regulation to protect their citizens who are posted abroad,[77] and who are historically susceptible to falling outside legal protection.[78] These countries' labour codes apply to those who perform work abroad on the basis on an employment relationship with an employer in the same jurisdiction.[79]

The material scope of labour disputes

A range of legal provisions in the laws examined establish specific grounds for a dispute to be eligible for individual and collective labour dispute processes. A traditional, albeit enduring, regulatory approach can be identified in most labour laws that treat rights-based labour disputes separately from interest-based collective disputes.[80] Broader conceptions of rights-based individual disputes allow parties to submit claims pertaining to rights from labour laws, individual employment contracts, collective agreements, and any other instruments that have a regulatory effect.[81] This is closely linked to the determination of the specific dispute resolution institutions that have competence or jurisdiction over them. Labour laws specify which institutions have jurisdiction over different disputes and some countries take the approach

73 Temporary Agency Work Act (2012:854), section 17.

74 Discrimination Act (2008:567), ch. 6, section 1.

75 Parental Leave Act (1995:584), sections 16 and 23.

76 This issue is highlighted in, for example, the country study on Morocco where undeclared work threatens the majority of migrant workers. The fact that their employment is subject to the prior approval of the foreigner's employment contract by the administrative authority responsible for employment dissuades many of them from taking the risk of being refused and pushes employers, like migrants, to agree to informal and atypical arrangements that do not allow rights to be enforced through conciliation and the courts.

77 Such workers are workers temporarily sent by their employer to work in another country (often between EU countries).

78 There is a well-documented history of reliance on low-cost labour from Eastern Europe in Western European countries through posted work. For recent information on efforts to strengthen the legislative protection of posted workers in Eastern Europe, see European Centre for Social Welfare Policy and Research, *Posting of workers in Eastern Europe Project* (EEPOW).

79 For example, Romania, Montenegro and Serbia.

80 Countries include Ireland, Germany, Sweden, Morocco and South Africa.

81 In Canada for example, an individual labour dispute for non-union employees can arise from statute or under the common law (their common law employment contract) whereas, for unionized employees, disputes arise from statute or from the interpretation of the collective agreement.

that rights-based disputes are to be settled via judicial processes, whereas alternative dispute resolution (ADR) processes are applied to interest-based disputes.[82]

An extremely common issue across all countries in the study pertains to disputes on whether a termination of employment is lawful, fair or justifiable. Disputes over dismissals may be treated differently by jurisdiction. Under Lebanese Labour Law, collective disputes may arise in the context of collective dismissals, but in Ireland, disputes concerning collective dismissals are processed on an individual basis. Across many of the legal frameworks, individual disputes relating to wage claims, discrimination, working hours, overtime and leave entitlements, social security payments, severance pay, notice periods and occupational safety and health are also common. In so far as collective rights disputes are concerned, the issues usually highlighted tend to revolve around the capacity of trade unions to conclude collective agreements,[83] the representativeness and recognition of trade unions,[84] violations of the right to organize and bargain collectively[85] and acts of discrimination against union officials.[86] Collective interest disputes are generally referred to as disputes that arise in the course of collective bargaining.[87]

Conclusion

A few key messages may be drawn from the above analysis. Individual and collective disputes may be legally defined and distinguished, emphasizing either one or various combinations of three factors: the *nature of the dispute* (rights-based versus interest-based); the *parties to the dispute* (single or group of workers or employers); or the *source of the rights* regarding which there is a dispute (the individual employment relationship versus collective agreements). Indeed, as seen in these varied regulatory approaches in different jurisdictions, it is not merely the presence of statutory definitions of such disputes that matters. What is important is that such a definition be *inclusive*, so that it does not leave out any kind of dispute from the labour dispute prevention and resolution system. Definitions that are circumscribed to include certain disputes but not others might effectively limit access by the parties to the appropriate forums for dispute resolution. The purpose of such definitions is to provide clarity on the specific avenues that parties to a labour dispute may have, no matter how that dispute is defined. A lack of clarity on this, whether on account of poor legal definitions or confusion over the jurisdictional competence of different labour dispute resolution institutions, can seriously hinder access to labour justice.

In addition, it is crucial that labour laws do not explicitly exclude any party—worker or employer—from the regulatory framework for labour dispute resolution. Such exclusion, whether de facto or de jure, greatly hinders access to labour justice and ultimately the effective resolution of disputes for maintaining harmonious industrial relations. This approach is vital not just for definitions to be inclusive of all types of disputes, but to be inclusive of all potential parties to a dispute so that they have access to the appropriate forums for dispute resolution.

Finally—and above all—we must recognize that even when legal and regulatory pathways to dispute resolution are clear, it is fundamental that in practice these are made *known and accessible* to parties. A broad understanding of the legal options available is essential for them to exercise their right to access labour justice. It is therefore necessary that these definitions not only be clearly stated in the law but that they be made clear through appropriate information channels to those workers and employers who may need this information.

82 For example, Ireland, Germany, Republic of Korea and Sweden.

83 Germany for instance.

84 As in Lebanon, Malaysia, India, Viet Nam, Serbia and Argentina.

85 Exemplified by the Republic of Korea and Serbia.

86 For instance, Lebanon, Republic of Korea, Malaysia, India, Serbia and Argentina.

87 In Canada for example.

Chapter 3.

Labour dispute resolution institutions and mechanisms

A wide variety of institutional arrangements are set up by Member States to prevent and resolve labour disputes. This section presents an analysis of the various types of institutions in the countries under study; the functions they perform; and their mandate, composition and governance structures. As above, we follow the definition of a labour dispute resolution institution in the ILO's diagnostic tool, that is, an organization that assists in resolving labour-related disputes. This definition covers judicial and non-judicial institutions, including consensus-based and adjudicative mechanisms. It also covers, depending on national context, a range of different arrangements including ministries and departments of labour (bodies within public-service national or state labour administrations); independent statutory bodies (bodies funded by the state but that operate with a degree of independence and autonomy); courts; and shared arrangements (where labour dispute resolution is partly the responsibility of the labour administration and partly that of an independent institution).[88]

The functions performed by labour dispute resolution institutions

The functions carried out by the institutions analysed here include those that exercise final (or near final) authority to render a binding decision in a dispute. This is the case for all judicial institutions, whether ordinary courts, specialized labour courts or the labour chambers of ordinary civil courts. It is also the case for quasi-judicial institutions. The analysis also covers those institutions that use consensus-based mechanisms and encourage a significant degree of *voluntarism* by the parties to resolve a dispute. Such institutions include those which provide forms of ADR, that is, conciliation, mediation and arbitration services, to find solutions to labour disputes outside the traditional judicial sphere.

There are significant complementarities between the adjudicative and consensus-based approaches of labour dispute resolution. Such ADR procedures can serve to filter disputes that come to judicial or quasi-judicial institutions. The judicial, quasi-judicial and non-judicial institutions, when functioning in coordination, complement one another and contribute to strengthening the effectiveness of the dispute resolution system as a whole, although there may often be an overlap and needless repetition of cases in these different bodies. Initially, it is important to understand how different jurisdictions define or apply these various functions, namely, adjudication, negotiation, conciliation, mediation and arbitration.[89]

88 ILO, *Access to labour justice: A diagnostic tool*.

89 Our understanding of these terms is guided by the glossary in ILO and ITC, *Labour Dispute Systems*.

Some countries do not provide formal definitions of most of these terms, or indeed any of them.[90] Across most of the legislations analysed, the term "adjudication" is not defined in any code or statute,[91] yet is commonly understood as a formal decision-making process in which the rights and obligations of the parties are determined on the basis of evidence and legal argument to settle disputes. Nor is the term "negotiation" often defined. One exception is Senegal, which defines negotiation as "processes entailing discussion between employers and employees for the purpose of seeking agreements and solutions to individual and collectives labour disputes".[92]The legal framework in the four West African jurisdictions studied, while not defining it formally, refers to negotiation in similar terms, emphasizing the aspect of discussions between employers and workers.[93] Mozambique refers to the "collective negotiation process" as beginning with the proposal for signing or revising a collective bargaining instrument.[94]

Most commonly, countries have definitions of the terms "conciliation", "mediation" and "arbitration", which sometimes conflict or overlap.[95] The terms "conciliation" and "mediation" can be used synonymously to refer to the process of a neutral third party assisting the parties in finding a mutually acceptable solution,[96] as in some of the jurisdictions studied.[97] But in other cases, a distinction is made between the two terms based on the notions that a conciliator may play an advisory or evaluative role,[98] or sometimes provide a recommendation to parties,[99] whereas a mediator acts only as a facilitator of voluntary discussions. This distinction is seen most clearly in Brazil, where the Superior Council of the Labour Court distinguishes between conciliation and mediation as a third person bringing together, empowering and guiding parties "*with* the creation or proposal of options for the resolution of the dispute" (conciliation) and "*without* the creation or proposal of options for the resolution of the dispute" (mediation) [our emphasis].[100]

In the Republic of Korea among other countries, the terms "conciliation" and "mediation" are used the other way around. Conciliation refers to a former system utilized for mediating labour disputes. Under this system, a conciliation commissioner reviews the key arguments from the involved parties and attempts to facilitate resolution. The commissioner's role is not to propose specific solutions

90 Bangladesh, Germany and Ireland, for instance, have only formal definitions of "mediation".

91 An exception here is Sweden where adjudication is defined as "A court's determination on the merits of the matter at issue an action is made in a judgment [...]". The Swedish Code of Judicial Procedure (1942:740), ch. 17, section 1, available in a (non-official) English translation.

92 The Labour Code (art. L.5.) and Decree No. 2009-1413 of 23 December 2009 (preamble and art. 1). Sweden, too, is an exception. Negotiation is regulated in the Co-determination Act (1976:580), stating that the duty to negotiate is a duty to "in person or through a representative, appear at the negotiation's meetings, and, where necessary, put forward a reasoned proposal for a solution of the matter to which the negotiations relate. The parties may jointly decide upon a form for negotiations other than through a meeting". See Codetermination Act (1976:580), sections 15 and 16.

93 Burkina Faso, Niger and Togo.

94 Art. 167. Senegal too refers to "collective negotiation" in its Labour Law.

95 These are defined in the glossary of ILO and ITC, *Labour Dispute Systems*, as follows:
Arbitration: The determination of a dispute by one or more independent third parties rather than by a court. During arbitration, an arbitrator hears the arguments of both parties to a dispute and settles the case by making an award. The proceedings are less formal than a court but there are some similarities including the presence of witnesses, the right to cross examination, and the right to legal representation. In most cases the award is final and binding. Appeals are usually confined to cases in which the award is contrary to the law, or the parties' right to be heard was not respected.
Conciliation: A process in which an independent and impartial third party assists the disputing parties to reach a mutually acceptable agreement to resolve their dispute. Conciliation extends the bargaining process by encouraging the disputing parties to reach a consensus but without imposing a solution to their dispute. It is sometimes referred to as assisted bargaining. For the purpose of this publication conciliation and mediation are used to describe the same process, leading to the use of the terms conciliation/mediation and conciliator/mediator.
Mediation: In most jurisdictions the term is synonymous with conciliation. There are, however, some more academic aspects of mediation which focus on different approaches to the process, but without changing its basic process orientation and non-determinative role. Facilitative mediation concentrates on the process alone without any suggestions or remedies being offered to the disputing parties.

96 See definition in previous footnote.

97 In, for example, Croatia, Canada and Sweden.

98 As in Ireland.

99 Including in Serbia, Montenegro, Colombia, China and South Africa.

100 Superior Council of the Labour Court (Conselho Superior da Justiça do Trabalho, CSJT) Resolution No. 252 of 22 November 2019.

but to encourage the parties to reach an agreement on their own. Mediation occurs when a labour dispute remains unresolved, and a conciliation commissioner[101] listens to the perspectives of labour and management and then formulates and presents a conciliation plan, that is, a settlement in an impartial position aiming to facilitate resolution and reach a mutually acceptable outcome. The manner in which conciliation and mediation are understood in the Republic of Korea differs from that in many other countries. In Bangladesh, for example, the conciliator is understood as having a more passive role than the mediator, and conciliation is a form of "assisted collective bargaining" in which the conflicting parties can have a fair chance of settlement through the services of expert negotiators. In mediation, however, parties are obliged to abide by the decisions made by a unanimously selected mediator.[102]

Beyond the role of a neutral third party as a mediator, the observed definitions of mediation tend to emphasize voluntariness or autonomy of the parties,[103] confidentiality of the process[104] and a mutually acceptable or amicable solution.[105] Similarly, the definitions of conciliation emphasize reaching an amicable solution.[106] Some jurisdictions emphasize the role of the mediator or conciliator as facilitating dialogue or communication between the parties.[107]

For the term "arbitration", definitions are sparse, but the few found emphasize the binding nature of the arbitrator's decision-making power.[108] In addition, the highlighted features of arbitration tend to revolve around voluntariness[109] and the independence and neutrality of the arbitrator.[110] Yet arbitration can sometimes be non-binding, taking the form of advisory arbitration. In such cases, the proceedings may be more formal than with conciliation or mediation, but still the arbitral award is suggestive, and it is up to the parties to accept the award or challenge it through legal means.[111] In Canada, we see a prevalence of "med-arb"—mediation-arbitration—by the same neutral person.[112] In this process, a mutually agreed-on arbitrator will, with the (typically tacit) consent of the parties, mediate and arbitrate, and the processes are intertwined. Similarly, "con-arb" is provided for in South Africa, with the idea that arbitration follows immediately after unsuccessful conciliation attempts.[113] Con-arb—concilliation-arbitration— in South Africa is only compulsory in probation disputes (dismissal of probationers and other unfair conduct relating to probation); in all other disputes, it may only take place if there is no objection.

101 Here, the terminology is the same (i.e. conciliation officer) even though the role is different (i.e. in the first case it is conciliation and in the second it is mediation)

102 Section 113(6), Bangladesh Labour Rules, 2015. Here the terminology is that of "mediation" though in practice this may appear to be more like arbitration.

103 For instance, Ireland, Germany, Serbia, Romania and Sweden.

104 For example, Ireland, Germany and Romania.

105 Including Ireland, Germany, Armenia, Mozambique, North Macedonia and Romania.

106 Exemplified in Burkina Faso, Niger, Senegal, Togo, North Macedonia and Romania.

107 As in Mozambique, Montenegro, Romania, Argentina and Chile.

108 For example, Romania, Montenegro, North Macedonia, Niger and Burkina Faso. An exception is Sweden: Arbitration is defined in the Swedish Arbitration Act (1999:116), according to which an arbitration agreement as an agreement between at least two parties that stipulates that a dispute shall be "referred to one or several arbitrators for resolution. Such an agreement may relate to future disputes pertaining to a legal relationship specified in the agreement. The dispute may concern the existence of a particular fact" See Swedish Arbitration Act (1999:116), section 1, available in a (non-official) English translation at the Swedish Arbitration Institute.

109 Montenegro for instance.

110 Examples are Montenegro and North Macedonia.

111 Including Viet Nam and South Africa. In South Africa, advisory arbitration is defined in labour legislation as non-binding arbitration, which may form part of conciliation, but is required in a dispute about refusal to bargain (section 64(2) of the Labour Relations Act). Sections 150A–D of that Act now also provide for the possibility of advisory arbitration (after unsuccessful conciliation) in the case of unduly protracted or violent strikes/lockouts or where the strike/lockout creates a social crisis. The goal is stated to be "to facilitate" resolution of the dispute.

112 This process has become the norm for labour arbitration in Ontario and to varying degrees in other parts of Canada. It is expressly available under the main Ontario labour relations statute; see section 50(1) of the Labour Relations Act, 1995.

113 Section 191(5A) and Rule 17 of the Commission for Conciliation, Mediation and Arbitration (CCMA).

Adjudication: Judicial and quasi-judicial institutions

Various countries have established judicial and quasi-judicial institutions (defined at the start of each subsection below) that receive many labour disputes for adjudication. The courts remain the primary institution for resolving individual rights based labour disputes in most of the countries covered. Legislative instruments may grant competence over labour disputes to judicial institutions that are either specialized labour courts and tribunals, or civil courts in the ordinary justice system. While many of these courts have exclusive jurisdiction over labour disputes, they interact with various non-judicial institutions or perform conciliation or mediation functions when carrying out their judicial functions. For their part, quasi-judicial institutions have adjudicative functions that are broadly comparable with those of courts, and they generally operate to reduce the incidence of cases submitted to judicial proceedings. We see a trend in the establishment of quasi-judicial institutions in almost all countries surveyed in the Asia-Pacific region.[114]

Judicial institutions

> For this report, we define judicial institutions as conflict-resolving forums that have the power to interpret the law and enforce its application, and that are established in a judicial structure or hierarchy, that is, in the third power in a state of law, besides the executive and the legislative.

Despite the prevalence of administrative and quasi-judicial bodies in labour dispute resolution systems, judicial institutions remain the dominant mechanism for resolving labour disputes, particularly rights-based disputes—whether individual or collective—in most of the countries in this study.[115] The legal frameworks examined place these judicial mechanisms, almost in equal numbers, under the purview either of specialized labour courts and tribunals[116] or of ordinary courts in the civil system.[117] While in some systems, parties must exhaust conciliation and/or mediation procedures before submitting a rights dispute for adjudication, in others, they have the right, or the only option, to submit a complaint directly to a court. With collective interest disputes in contrast, in most cases there is no recourse to judicial forums.[118] Collective interest disputes are, however, sometimes subject to adjudicative process within the scope of quasi-judicial institutions.[119]

114 Including China, Republic of Korea, Malaysia, Pakistan, India and Bangladesh. In Viet Nam, a Labour Arbitration Panel exists but its awards are not legally enforceable.

115 A few exceptions have been noted in Ireland, Lebanon, Malaysia and India where the administrative and quasi-judicial institutions play a more active adjudicative role.

116 As in Germany, Burkina Faso, Niger, Senegal, Togo, Brazil, Mozambique, Kenya, Bangladesh, Mexico, Argentina, Chile, Colombia, Panama, Sweden, South Africa, Costa Rica and UK.

117 As in the Republic of Korea, Armenia, Viet Nam, Serbia, North Macedonia, Montenegro, Romania, Croatia, Bulgaria and Albania. (Also Morocco, through ordinary/civil courts with specialized labour sections). In China, in some regions with relatively developed economies and many labour disputes, some courts have also begun to explore the establishment of special labour dispute tribunal. In July 2021, the country's first labour tribunal was officially established in the Intermediate People's Court of Suzhou City, Jiangsu Province. As of March 2023, the tribunal had accepted 3,939 labour dispute cases and concluded 3,659 cases; see http://rmfyb.chinacourt.org/paper/html/2023-03/13/content_226568.htm?div=-1).

118 An exception is Chile, where some collective interest disputes go to the judicial system.

119 For example, the Labour Relations Commission in the Republic of Korea and the Arbitration Commission for the Resolution of Collective Labour Disputes in Lebanon. In Lebanon however, rights-based disputes, too, are resolved by a quasi-judicial institution, albeit a different one, namely the Labour Arbitration Council.

Quite a few countries have established labour courts that function as separate institutions from ordinary courts, with specialized adjudicative mechanisms to address collective and individual labour disputes. In such cases, features that distinguish labour courts include the presence of judges or sometimes lay judges[120] with expertise in labour law; simplified legal proceedings; and far lower costs for parties, all of which are enabling factors in enhancing access to labour justice. In the West African jurisdictions examined,[121] specialized courts with territorial competences are tasked with resolving local labour disputes. In some cases, this specialization extends all the way from the courts of first instance to the highest court of appeal, as in Brazil (Box 3). The functioning of specialized labour courts can be problematic, however: in Bangladesh, for example, where such courts and a labour appellate tribunal have been established,[122] we see long delays in resolving cases, a backlog of cases, frequent adjournment of judicial proceedings and a dearth of experienced judges.

▶ Box 3. Brazil's labour justice system

Since 1941, Brazil has had a justice system specialized in labour law, responsible for conciliating and judging individual and collective disputes between workers and employers. It is administratively and financially independent. Its judges and staff are selected mainly through public competitions based on technical evaluations that require specific knowledge of labour law. Its proceedings are simplified, including the possibility of filing a case without a lawyer, free of charge for parties with limited resources and largely digitized, including online hearings.

Brazil's labour justice system consists of district and regional courts (first instance and appellate level, respectively), as well as a Supreme Labour Court (the highest level of appeal). The primary function of the Superior Labour Court system is to standardize labour jurisprudence across the country. The Superior Labour Court is further subdivided into two specialized sections on collective labour disputes and individual labour disputes. In addition to adjudicating, labour courts at all levels mediate and conciliate individual and collective disputes, regardless of the filing of a case. The most recurrent issues in the labour courts are severance payments, including fines for late payment, overtime, prior notice and hazard pay.

The Superior Labour Court system has 24 regional labour courts; 1,587 district labour courts; 102 judicial centres for consensual methods of dispute resolution; 3,955 Judges; and 43,167 support staff. Brazilian labour courts receive about 3 million cases a year; 100 per cent of new cases are filed in digital format; conciliation takes place in around 45 per cent of the cases in the pre-trial stage; and the average time taken to process cases in the first instance, from the filing of the case to the delivery of the sentence, is about eight months.

Source: Superior Labour Court.

120 As in Germany, Belgium, Bangladesh, Romania and Barbados.

121 Including Burkina Faso, Niger, Senegal and Togo.

122 Sections 214 and 218 of the Bangladesh Labour Act, 2006.

Despite the many legal systems with specialized labour courts in this study, the resolution of individual labour disputes through ordinary courts is still prevalent. Some legal systems may put in place special measures to enhance disputants' access to appropriate and effective mechanisms for labour matters. In North Macedonia, for example, specialized court chambers are formed depending on the type and volume of work in the court, including for labour disputes, which also enjoy a special regime in terms of procedure, primarily to expedite matters. Yet this approach may be more informal. In Serbia, for instance, ordinary courts hear individual labour disputes so reportedly there are frequent issues with court caseload and lack of specialized knowledge of civil judges, including in relation to international labour standards.

Some countries have endeavoured to streamline the judicial processing of labour disputes by establishing specialized labour divisions within civil courts, including Germany and Romania. For instance, in all the West African jurisdictions analysed, while at the first instance there are specialized labour courts, at the level of the Courts of Appeal and Court of Cassation specialized labour chambers have been established.[123]

Even in many systems with specialized labour courts or provisions for labour disputes to be addressed by quasi-judicial institutions, a crucial role remains for ordinary courts in labour dispute resolution, either acting as a court of appeal for labour matters arising from such institutions[124] or stepping in to hear labour matters in the absence of competent labour courts.[125] Sometimes, ordinary courts may have jurisdiction for specific types of labour disputes or certain matters pertaining to labour disputes. In Ireland for instance, the high court hears applications for injunctions to restrain industrial action during a dispute, as well as cases for damages in cases of wrongful dismissal. Similarly, Irish circuit courts may entertain cases of gender discrimination. In Canada, where dispute resolution for unionized workers is primarily through arbitration, the Courts of Justice handle individual employment claims of non-unionized workers.[126] To the extent that labour legislation provides for criminal sanctions, prosecution in such cases may take place within courts with appropriate criminal law jurisdiction.[127] Ordinary courts may equally play a role in enforcing decisions of other institutions.[128]

Additionally, legislative frameworks establish various bases for institutional linkages and interactions between courts and other mechanisms integral to labour dispute resolution systems. As said, some courts may hear cases following a process where ADR mechanisms overseen by administrative bodies have been exhausted.[129] In other cases, judges may have discretion to interrupt proceedings and refer cases to conciliation or mediation.[130] In Niger, for example, courts are required, first, always to attempt to settle the matter via conciliation. If this is unsuccessful, parties may initiate judicial processes by submitting a written or oral declaration to the registry of the territorially competent labour court.

Similarly, a distinctive feature of many jurisdictions in the Americas is the provision of in-court conciliation.[131] In Brazil for example, each regional labour court (appellate labour court) has Judicial

123 Burkina Faso, Niger, Senegal and Togo.

124 For example, Ireland, India, Burkina Faso, Niger, Senegal and Togo.

125 A unique example may be drawn from the Croatian Civil Code of Procedure, which grants ordinary courts jurisdiction over "employment-related litigation", while envisaging the establishment of specialized judicial bodies for resolving such disputes. In practice, labour disputes are primarily heard in municipal courts, except in the capital, Zagreb, where a Municipal Labour Court has been established. In Brazil and Mozambique too, where highly specialized labour courts are established, in the absence of such a labour court in the disputant's domicile, proceedings for labour disputes may take place before an ordinary judge.

126 As in Sweden: to directly approach the labour court, the action must be brought by an employers' organization, an employees' organization or an employer who has entered into a collective agreement on an individual basis. Therefore, the district courts in Sweden hear cases where an employee brings an individual claim without being represented by a trade union—either because the employee is not a member of a trade union, or because the union believes that the claim is wrongful and therefore refuses to represent the union member. The district court is also the court of first instance in disputes where action is brought by or against an employer who is not bound by a collective agreement. In both these cases, the Swedish Labour Court is the appellate court.

127 As in Ireland and India.

128 The district court hears applications for enforcement of decisions by the Labour Court (a quasi-judicial body) in Ireland.

129 See Viet Nam and Mexico in Section IV.

130 Germany is one such country.

131 As in Colombia, Panama, Chile, Argentina and Brazil. In-court mediation is also provided in Serbia and Montenegro.

Centres for Consensual Dispute Resolution (*Centros Judiciários de Métodos Consensuais de Solução de Disputas, CEJUSC-JT*), responsible for holding conciliation and mediation sessions and hearings in individual claims at any stage or instance, including those pending trial before the Superior Labour Court.[132] Likewise in Argentina, the Compulsory Labour Conciliation Service (*Servicio de Conciliación Laboral Obligatoria, SECLO*) conducts mandatory pre-judicial conciliation services for all rights-based disputes falling under the jurisdiction of labour courts.[133]

On the composition of most judicial institutions, at the first instance, a number of countries provide for labour disputes to be heard by a single judge.[134] A few countries specifically provide for setting up panels that include not only a professional judge but also "lay judges", with the participation of social partners in judicial institutions (Box 4). In Romania, panel members comprise a specialized professional judge and two lay assistants, who are proposed by nationally representative employers' and workers' organizations. In Burkina Faso, Niger, Senegal and Togo, the labour court has two judges—the president of the court and another judicial member—as well as "assessors" who equally represent organized labour and organized employers, and are appointed for renewable terms of a certain number of years at a time. They are selected from lists presented by the most representative employers' organizations and trade unions, or by the locally competent labour inspector if the employers' organization and trade unions have not provided lists of assessors. In some countries such as Viet Nam, social partners, particularly public servants in upper-level trade unions, can occasionally be appointed as a jury in the labour court. In some other systems, there is no practice of having lay judges in court.[135]

▶ Box 4. The participation of lay judges in labour proceedings—Examples from Europe

Several European judicial systems provide for lay judges in labour proceedings.

In **Belgium**, both the labour tribunals (first instance) and the labour courts (appeals level) are divided into chambers comprising a professional judge, who chairs the chamber, and two lay judges.[a] The lay judges are appointed by their respective organizations and their role is to assist the professional judge in examining a case. Depending on the nature of the dispute, lay judges may represent the workers, the employers or the self-employed. However, the Supreme Court (*Cour de Cassation*) is composed only of professional judges. For the deliberations, the voice of the lay judge in principle carries as much weight as that of the professional judge, meaning that the latter may be in the minority. In practice, the professional judge's vote, on points of law at least, carries a certain additional weight.

In **France**, the Conseil de Prud'hommes is a first-level joint tribunal ("juridiction paritaire") that is competent for individual labour disputes arising from employment contracts. It is made up of non-professional judges (*councillors*) divided into two colleges, which are composed of the same number of *conseillers* appointed respectively by employers' and workers' organizations. At the appeals level, both the Appeal Court and the Supreme Court (Cour de Cassation) are composed exclusively of professional judges.

132 The CEJUSC-JT's also offer amicable resolution of labour disputes, without the need for a judicial lawsuit. If a lawsuit already exists, a request for pre-judicial conciliation/mediation is not applicable, but rather a request for designation of mediation and/or conciliation as part of the judicial proceedings.

133 Arts. 1 and 4 of the Law on Compulsory Conciliation in Labour Disputes, No. 24.635, provide that individual and multi-individual claims regarding "legal conflicts" (rights disputes) within the jurisdiction of National Labour Justices will be subject to mandatory conciliation.

134 Including Croatia (unless the law stipulates that the case is tried by a panel), Panama, Colombia, Chile, Argentina and Brazil.

135 Countries include Ireland, Republic of Korea, Armenia, Brazil, Argentina and Mexico.

▶ *Box 4 (cont.)*

In **Sweden**, the Labour Court has a dual role. It can serve as an appeals body against decisions by district courts. It can also be a one-instance special court for certain types of labour disputes (first and last instance). The Labour Court generally has seven members, including three "neutral" members and four lay judges who represent employers' and workers' organizations (two for each side). The three neutral members are the chair, vice-chair and a labour market specialist, who often comes from a ministerial department. Only the chair and vice-chair are professional judges. Where legal issues are uncomplicated, the Labour Court may consist of three members only—the chair and two lay judges. There are no types of appeal on which professional judges must sit without lay judges. Every member of the Labour Court has one vote, meaning that the four lay members could outvote the three professional judges, though this has happened only once. The lay judges are selected by their respective organizations and appointed by the government.

In the **United Kingdom**, the hearings of Employment Tribunals are always chaired by a professional judge (known as an "employment judge") who is an independent member of the judiciary. In principle, preliminary hearings are always conducted by an employment judge sitting alone. Certain types of cases can also be conducted only by such a judge. All other cases are heard by a panel, normally consisting of an employment judge and two other members ("non-legal members"). The non-legal members act as independent judges, and are split between an "employer panel" and an "employee panel". They may (and occasionally do) outvote the professional presiding judge. From a judgment of the Employment Tribunal, an appeal lies (on a point of law only) to the Employment Appeal Tribunal, which consists of a High Court judge as chair and two or four lay members. Thereafter an appeal may lie to the Court of Appeal (Civil Division) and the Supreme Court, which consists solely of professional judges.

In **Denmark**, the system is quite similar to the Belgian one, although decisions made by the Labour Court cannot be appealed to any other judicial instance (although the Labour Court itself may review the decision). The Danish Labour Court is composed of a president and five vice-presidents; six ordinary and 14 substitute members appointed by private and public employers' organizations; and six ordinary and 17 substitute members appointed by workers' organizations. Usually, the president and vice-presidents are judges from the Supreme Court. Consequently, no member is assigned to a full-time job at the Labour Court.

In **Germany**, the participation of lay judges is provided for at all three levels, but the number of professional judges varies depending on the level. Cases before both the first-instance Labour Court and the appeal-level regional labour courts are heard by panels (*Kammern*) made up of one professional judge and of two lay judges representing employers and workers respectively. At the federal labour court (final instance), the panels (*Senate*) are made up of three professional judges—one of them the presiding judge—and two lay judges representing employers and workers.

The participation of lay judges in labour proceedings tends to be perceived positively as a factor that strengthens the confidence of employers and workers in the administration of justice and that contributes to social peace.[b]

a Lay judges are called "social judges" at tribunal level, and "social counsellors" at court level. The Belgian Judicial Code provides for certain cases where the professional judge can make the decision alone, without the assistance of lay judges.

b See ILO European Labour Court Meeting of Judges, 10th meeting, Stockholm, 2002. *Topic 1: Labour Court Lay Judges*. Available here.

Finally, a critical factor in maintaining judicial institutions' independence and efficiency is the source and reliability of funding. Most often among the countries surveyed, financial resources for judicial institutions are provided by the state and are stable and predictable.[136] In some countries, provisions are made for the budget to be transferable within the court system,[137] which may allow for some flexibility in how funds are managed. Still, some countries report that their judicial institutions are not financially independent and do not have a separate budget.[138] Even when funding is predictable and reliable, the amount of funding may be questioned.[139] This has consequences for both the total number of judges available and their wages, which if insufficient may not serve to attract and retain the best talent, hindering the efficiency and professionalism of the judicial system for labour dispute resolution.

Quasi-judicial institutions

For this report, we define quasi-judicial institutions as those institutions that fall outside the scope of the judiciary and that have an adjudicative function—specifically, those institutions that render final or near-final outcomes with limited scope for review or appeal. If an institution has adjudicatory authority but its decisions are readily subject to appeal at the will of a party, we do not include it among quasi-judicial institutions but among non-judicial institutions.

Quasi-judicial institutions that adjudicate on labour disputes serve to reduce the volume of proceedings instituted in labour courts or ordinary courts, while granting aggrieved parties access to swift remedy with binding and legally enforceable outcomes. Several quasi-judicial institutions in the countries surveyed take the form of public arbitration bodies, which are equipped with functional equivalence to courts of first instance for individual disputes. Ranging from commissions,[140] boards[141] and councils,[142] to courts[143] and tribunals,[144] the quasi-judicial bodies have various names and appear in a range of institutional formats. However, not all arbitration/adjudicative bodies have the same authority. For example, both Lebanon and Viet Nam have a Labour Arbitration Council, but while in Lebanon its decisions are final and authoritative, in Viet Nam its decisions are not legally binding. Arbitration bodies play very different roles in the various jurisdictions.

Ireland's Workplace Relations Commission (WRC) performs a wide range of functions including, adjudication in employment rights disputes (falling under the scope of the Employment Act) at the first instance, besides conciliation in collective interest disputes. The Labour Court of Ireland is an industrial appellate tribunal for employment rights disputes, that renders definitive decisions appealable in courts of law on very restricted grounds. In addition, the Irish Labour Court hears collective labour disputes, which remain unresolved through conciliation and provides non-binding settlement recommendations.

136 Examples are Sweden, Germany, Republic of Korea, Viet Nam, Brazil, Kenya, Argentina, Chile, Colombia, Panama and Mexico.

137 Such as Viet Nam.

138 For example, Burkina Faso, Niger, Togo and Senegal.

139 As for instance in Armenia, where the study highlights the inadequacy of the allotted budget.

140 For example, the Labour Relations Commission in the Republic of Korea, the Arbitration Commission in Lebanon, the Fair Work Commission in Australia, and the CCMA in South Africa.

141 For example, labour relations boards in the United States and Canada.

142 For instance, the Labour Arbitration Council in Lebanon, and bargaining councils in South Africa.

143 Exemplified by the Labour Court in Ireland, the Industrial Court in Malaysia, and arbitration courts in Colombia and Panama.

144 Including industrial tribunals in India, the Arbitration Tribunal in Croatia and the Arbitral Tribunal in Chile.

In some cases, labour administration bodies may have exclusive authority to enforce certain laws, with or without a complaint made by one of the parties affected by non-enforcement. An extreme example of administrative agency control is that seen under the Occupational Safety and Health Act (OSH Act) in the United States (US). The Occupational Health and Safety Administration (OSHA) in the US Department of Labour does not have to receive a complaint to start the enforcement process, and it may inspect any workplace on its own initiative (or of course after receiving a complaint), citing violations to employers. If contested, OSHA's orders are heard and adjudicated on by a staff administrative law judge of the Occupational Safety and Health Review Commission (OSHRC). The National Labor Relations Board (NLRB), established under the National Labor Relations Act (NLRA) has similar adjudicatory authority, but unlike OSHA it may only act after a charge has been filed. Still, parties are highly dependent on the discretion of these two bodies to issue charges and to prosecute violations, rather than themselves being able to sue for violations of the law. Yet a party not satisfied with the administrative decision of these bodies may appeal for it to be reviewed by the Administrative Review Board and, further, by the US Court of Appeals.

In some countries, arbitration may be the only route to labour dispute resolution. In Canada for example, for unionized employees, all disputes arising from statute or from the interpretation of the collective agreement that are not resolved by the parties themselves go to arbitration by an independent arbitrator agreed on by the parties to the dispute. Failing agreement, the Minister of Labour appoints the arbitrator from a roster of arbitrators that it maintains, and the Superior Court has limited scope for reviewing the arbitrator's decision.

In other countries, the parties may have a choice over whether to refer their dispute to arbitration. In Bangladesh for example, if conciliation proceedings fail, the Conciliator will try to persuade the parties to agree to refer the dispute to an arbitrator, and the parties may (or may not) agree to make such a referral.[145] The award of the arbitrator is binding for two years, and no appeal lies against it. The study on Bangladesh reports that this discourages the parties from making a reference to an arbitrator, preferring to approach the Labour Court instead.

Arbitration may be conducted either by a tripartite panel[146] (of neutral chair, and union and management nominees) or by a single arbitrator.[147] In the United States, too, quite a few employers have, as a condition of employment, required their employees to agree not to sue for violation of the various statutes that regulate the workplace but will, instead, arbitrate their claims individually. Courts have generally enforced these agreements even though they prevent employees from participating in class actions or collective actions.

The arbitrator's qualifications vary by country. In Ireland for example, adjudication officers in the WRC are not required to have any legal training or qualification; some are civil servants, but the majority of these officers are recruited through an open competition organized by the Public Appointments Service. In some countries, there is no minimum educational or professional qualification for labour arbitrators.[148]

145 Section 210(10) and 210(12) of the Bangladesh Labour Act, 2006.

146 That is, giving equal voice to workers, employers and governments.

147 In Canada for example, tripartite boards of arbitration are rare in grievance arbitration, though much more common in interest arbitration.

148 Most arbitrators in Canada, for example, are lawyers who have acted as representatives of employers or unions in labour law disputes. In Bangladesh, the law does not clarify the arbitrator's necessary qualifications.

▶ Box 5. Government referrals for adjudication

Government authorities in Malaysia are heavily involved in labour dispute resolution. Adjudication of labour disputes is primarily performed by quasi-judicial institutions.

The Industrial Court in Malaysia is an arbitration institution consisting of a president and chairpersons appointed by the Yang di-Pertuan Agong (head of state) as well as a panel of persons representing employers and a panel of persons representing workers, all of whom are appointed by the minister. Until recently in Malaysia, disputes under the Industrial Relations Act were dealt with first under the auspices of the Director-General for Industrial Relations (DGIR), where they are conciliated within the ministry and then, if conciliation failed, referred to the minister for a decision (in case of recognition disputes) or for him/her to determine whether the dispute should be referred to the Industrial Court for adjudication. The minister used to have discretion (see just below) on whether to refer the dispute to the Industrial Court of his/her own motion or after a joint request by the parties. The minister was also given the power to first attempt further conciliation.

After the Industrial Relations (Amendment) Act, 2020, which came into force on 1 January 2021, the DGIR was empowered to directly refer complaints relating to the protection of rights of workers and employers, if he/she thinks fit, to the Industrial Court. With respect to representations of dismissals, the DGIR is required to refer the matter to the Industrial Court. This amendment was intended to expedite the resolution process and to remove administrative discretionary authority, addressing concerns raised by the ILO on ministerial discretion in respect of referrals of interest disputes. Indeed, government discretion in referring cases to the Industrial Court for adjudication was a significant roadblock in access to labour justice for parties, leading to this reform.

Quasi-judicial institutions are often tripartite industrial tribunals, such as the Labour Arbitration Council and Arbitration Commissions in Lebanon, the Labour Court in Ireland and the Labour Relations Commission in the Republic of Korea, but can sometimes be established with the appointment of a judge, as with labour courts and industrial tribunals in India.

Findings on the financial independence of quasi-judicial institutions are more mixed than for judicial institutions. In some reviewed countries they have regular and predictable funding provided by the state,[149] but not all.[150] Arbitrators in general are paid for each case to which they are appointed, usually at the rate stipulated by the arbitrator and accepted by the parties to the arbitration. Labour boards in the United States and Canada have their own budget and are financially independent, per the country studies.

149 As with the Labour Court and the Workplace Relations Commission (WRC) in Ireland and the Labour Relations Commission in the Republic of Korea.

150 In the Lebanon country study, it is reported that "The Lebanese labor institutions do not operate with complete financial independence. The budget for these institutions is determined and fully paid for by the government, and the funds allocated to them may be subject to restrictions or limitations".

Alternative dispute resolution: Non-judicial institutions and labour administration

For this report, we define non-judicial institutions to be bodies operating outside the purview of the judiciary; and designed to provide a less adversarial and more cooperative approach to resolving labour disputes, with an emphasis on consensus-based solutions. Such institutions are not directly involved in interpreting laws.

In this subsection, we address mechanisms for labour dispute prevention and resolution other than those that apply adjudicatory means. In this sense, 'alternative dispute resolution' (ADR) refers to mechanisms such as mediation, conciliation, and arbitration for the resolution of labour disputes. Contrary to the previous section, which analyses binding arbitration as a quasi-judicial procedure for dispute resolution, the present section examines "advisory" or non-binding arbitration, that is, arbitration that does not result in a binding and enforceable arbitral award, and that comes into effect only if the disputing parties accept it.

Most non-judicial mechanisms for labour dispute resolution in the systems analysed are embedded in the national labour administration system,[151] except for those under the parliament or president, such as the ombuds office or commission for anti-discrimination/human rights cases (discussed below in *Other institutional arrangements*). Some are embedded or subordinated to ministries or departments in charge of labour, social affairs or employment,[152] whereas others are autonomous governmental agencies.[153] We do not include in-court mediation here as it has been addressed under the subsection *Judicial institutions*. And because judicial institutions most often depend on the Ministry of Justice on the one hand, and non-judicial institutions tend to be embedded in labour administration systems on the other, coordination among them is required to ensure effective access to labour justice.

In many countries, labour dispute resolution functions are carried out by specialized institutions independent from governmental ministries and departments by law, but in practice they are not completely autonomous from government authority. In some countries, the Minister of Labour appoints the bodies' members. In India for instance, conciliation officers provided for under the Industrial Disputes Act (Section 4) are directly appointed by the government (for certain industries under the authority of the central government, and in all other cases the state government).[154] In Burkina Faso for example, arbitration proceedings are held before an Arbitration Board convened by the Labour Minister, and are compulsory for collective disputes after conciliation has proven totally or partly unsuccessful.[155]

151 The term "labour administration" encompasses all public bodies responsible or engaged in administration activities in the field of national labour policies which include ministerial departments or public agencies. Parastatal and regional or local agencies or any other form of decentralized administration are also under the scope of labour administrative bodies. See art. 1 of the Labour Administration Convention, 1978 (No. 150) and the Labour Administration Recommendation, 1978 (No. 158).

152 For example, Belgium, Ireland, Albania, North Macedonia, Bangladesh and Albania.

153 ILO and ITC, *Labour Dispute Systems*, p. 28; Labour Relations Commission in the Republic of Korea; Comissão de Mediação e Arbitragem Laboral (COMAL) and Centros de Mediação e Arbitragem Laboral (CEMAL) in Mozambique; the Advisory, Conciliation and Arbitration Service (ACAS) in the UK; the Federal Mediation and Conciliation Service (FMCS) in the United States; the CCMA in South Africa; and the National Mediation Office (NMO) in Sweden.

154 As discussed above in India and Malaysia (until the recent reforms in both countries, which have yet to be implemented in India), the government has authority is determining which cases are adjudicated. In Bangladesh too, the divisional offices of the Directorate of Labour act as the conciliators.

155 And in Niger and Togo.

Some of the administrative bodies responsible for ADR are composed of an equal number of representatives of employers and workers (Box 6).[156] In other instances, they have a tripartite or "tripartite-plus" constitution, that is, including representatives of government and, sometimes, civil society. For instance in the Republic of Korea, the Labour Relations Commission that has a mediation and arbitration function when labour dispute mediation is sought, forms a mediation committee consisting of a trade union member, an employers' organization member, and a public-interest member (three in all) for general businesses; and a special mediation committee consisting of three public-interest members for public services. Tripartite representation of government, employers and workers in some dispute resolution bodies is an important factor in ensuring expertise in and understanding of the concerns of disputing parties, which contributes to users' trust in the system. (Box 7 presents examples of institutional set-ups with diverse representation.)

▶ Box 6. The role of the social partners in conciliation of collective disputes—Belgium

In **Belgium**, joint committees (*commissions paritaires*) have been set up for all branches and sectors, with the aim of bringing together employers and workers engaged in similar activities. These committees are made up of equal numbers of representatives of employers' and workers' organizations. One of their main responsibilities is concluding collective agreements; another is preventing and settling collective disputes. Most joint committees and joint sub-committees have a conciliation board, which are usually chaired and vice-chaired by a social conciliator belonging to the body of social conciliators established by the Ministry of Labour, Employment and Social Dialogue. As of mid-2023, 100 joint committees and 64 joint sub-committees had been established.

The objective of the conciliation board is to reach a consensual solution, possibly through separate consultations with each party. Collective labour disputes or threats of such disputes are referred to the chair of the conciliation board by one of the parties, or handled at the initiative of the chair. In addition, in the event of industrial action, the joint (sub-) committees are also responsible for determining and limiting the measures, services or facilities to be provided, with a view to meeting certain vital needs, carrying out certain urgent work on machinery or equipment, or performing certain tasks required by force majeure or unforeseen necessity.

Source: Belgian SPF/Ministry of Labour, Employment and Social Dialogue. https://emploi.belgique.be/fr/themes/concertation-sociale.

156 For instance, the Labour Arbitration Council in Viet Nam, which comprises at least five members nominated by the Department of Labour, Invalids and Social Affairs (including the Chair and the Secretary of the Council); five members nominated by the trade union at provincial level; and five members nominated by the representative organizations of the employers at provincial level. In Brazil, the "commissions of previous conciliation" are established by companies and trade unions, with an equal number of representatives from employees and employers, with the aim of trying to conciliate individual labour disputes.

Often, non-judicial means of labour dispute resolution can also be established by social partners within the scope of their mutually negotiated collective agreements. In Germany for instance, social partners rely on voluntary conciliation and arbitration procedures (*Schlichtungsabkommen*) for labour disputes over the conclusion of collective agreements. These procedures have been established by collective agreements, most of which do not establish permanent conciliation and arbitration bodies, but only provide rules for establishing ad hoc conciliation and arbitration procedures, most of which are bipartite institutions, funded by the social partners in the respective sector.

In Senegal, Article 71 of the National Inter-occupational Collective Agreement of 27 May 1982 established the Joint Commission of Interpretation and Conciliation. It has two tenured members, and two substitutes from each trade-union signatory to the collective agreement and an equal number of tenured and substitute members of employers' organizations that are signatory to that agreement. The mission of this institution is to seek an amicable solution to disputes arising from the interpretation or non-application of the collective agreement.

▶ Box 7. Bipartite dispute resolution set-up

Germany

A specific institution exists for labour disputes between works councils (*Betriebsräte*) and employers. According to the Works Constitution Act of 1972, a works council is to be elected by the workers in each plant with at least five workers. This body, representing the workforce at the plant, has various participation rights vis-à-vis the employer. Beside an information and consultation right in cases of dismissals and a veto right before the recruitment of employees, the works council has important codetermination rights in social and economic matters. If the works council has a codetermination right and an agreement between the council and the employer cannot be reached, each side is entitled to call for an arbitration committee (*Einigungsstelle*). For all other issues for which the works council has no codetermination right, the arbitration committee may intervene if both sides agree on a conciliation and arbitration procedure.

The arbitration committee is rarely a permanent institution but rather an ad hoc body established by the works council and employer when it has been called for by one or both sides. It is composed of an equal number of representatives of each party—the number depends on the complexity of the labour dispute at hand—and a neutral chair whom the parties have to agree on. If the parties do not agree on the chair, either side may ask the labour court to appoint that person.

▶ *Box 7 (cont.)*

South Africa

The Labour Relations Act (LRA) provides for the establishment of two types of bargaining councils: those in the public service (sections 35–38 of the LRA) and those in the private sector (established by agreement between employers' and workers' organizations, and registered by the Department of Employment and Labour by sector and area). These councils have a dual function: to serve as a forum for bargaining, and to resolve rights disputes in their jurisdictions (if they are accredited by the Commission for Conciliation, Mediation and Arbitration (CCMA). Collective agreements may be extended to non-parties.

Compliance with these agreements is monitored and enforced by designated agents of the council and, ultimately, arbitration conducted by the council. Councils are typically financed through levies based on collective agreements reached in the council. Bargaining councils are an integral part of the labour dispute resolution system and are given jurisdiction to conciliate and arbitrate the most common types of disputes that are envisaged by legislation and that arise in their jurisdiction. Where legislation gives jurisdiction to councils and the CCMA to hear disputes, the LRA specifies that primary jurisdiction belongs to the councils. A big issue in practice is the "demarcation disputes" in terms of section 62 of the LRA (disputes about conflicting or overlapping areas of competence between different bargaining councils). These disputes may be settled between councils; if not, they are arbitrated by the CCMA. In addition, if the CCMA considers the issue of "substantial importance", part of this process includes an invitation (published in the Government Gazette) to make written submissions, present consideration of those submissions, and provide for consultation with the National Economic Development and Labour Council before the award is handed down (which may also be published in the Government Gazette).

Similarly in Sweden, dispute resolution by conciliation and mediation can either be provided by the National Mediation Office (NMO) in the statutory system, or in a system laid down in a collective agreement called "negotiation procedure agreement (NPA)" entered into by the social partners. Such an agreement can be registered at the NMO, provided that it contains time schedules for negotiations, time frameworks and rules for appointment of a mediator, rules concerning the powers of the mediator, and rules concerning notice of termination of the agreement. When an NPA has been registered, the NMO may not appoint a mediator without the consent of the parties. In 2022, 14 NPAs were registered at the NMO, providing negotiation procedures for 90 of the collective agreements in the Swedish labour market (of the 650 in all), covering around 30 percent of employees.[157] The vast majority of the NPAs were concluded at the establishment of the NMO in 2000. Over the years, some of them have been terminated without renewal and, nowadays, NPAs are more common for white-collar and academic trade unions than for blue-collar trade unions. The NPAs registered in 2022 include one for manufacturing industry (the Industrial Agreement, for blue-collar workers), six agreements between the trade union for managers (Ledarna) and various employers' associations in the private sector, and one agreement that covers a large part of the municipal sector (although not the Swedish Municipal Workers' Union, Kommunal).[158]

157 NMO, 2023, p. 27, available (in Swedish).

158 A list (in Swedish) of the agreements is on this NMO web page.

ADR and labour inspection

Labour inspectorates are at the epicentre of enforcing labour laws, and have an important role in the prevention and facilitation of resolution of disputes through information and advisory services, without prejudice to the principle of confidentiality and impartiality. Therefore, Labour Inspection services are called to perform such functions in complementarity and cooperation with judicial and non-judicial institutions for labour dispute resolution. However, In various countries, there is a particularly strong overlap of functions between non-judicial institutions and labour inspection systems. Often, it is not just that the same institution performs law enforcement and at the same time conciliation/mediation or arbitration functions, but the same officials. In some countries, labour inspectors may conduct or participate in conciliation proceedings within their area of competence.[159] This practice makes labour inspectors a focal point for ADR, as conciliation and mediation mechanisms are often mandatory and must be undertaken by disputing parties before they seek redress in labour courts. The Labour Inspectorate in Chile, for example, exercises its functions through labour inspectors empowered to summon employers, workers, union officials or any person to resolve matters submitted to it. Chile's labour inspectors may institute labour mediation processes to prevent the escalation of labour disputes.[160] In Colombia, one of the Labour Inspectorate's main functions is the conciliation of individual and collective labour disputes.[161] In Niger and Togo, labour inspectors may serve as informal mediators in labour disputes.

Such practices do not align with ILO conventions that establish that the primary duties of labour inspectors should be labour law enforcement; information and advisory services; and reporting of non-compliance.[162] Conventions further recommend that labour inspectors should not be assigned conciliation and arbitration functions.[163] The ILO Committee of Experts on the Application of Conventions and Recommendations, while observing that there are countries in which conciliation and mediation are regarded as "a natural aspect of the function of labour inspectors", stated that such functions may negatively impact the efficacy of enforcement functions because of overburdening.[164] This, in turn, undermines the efficacy of inspectorates' role in preventing labour disputes through enforcement.

Other institutional arrangements

In some jurisdictions, institutional arrangements are set up under the authority of the parliament, or the president, and directly or indirectly play a role in labour dispute prevention and resolution. Such institutional arrangements are most typically organized as ombuds office[165] or bodies established to defend and promote human rights, equality or non-discrimination.[166] The level of involvement of such institutions in labour disputes may vary. In Sweden for instance, in disputes concerning discrimination and unfavourable treatment in connection with parental leave, legal support may be provided by the Equality Ombudsman—a national authority assigned to promote equal opportunities, inform about and work against discrimination, and represent individuals in discrimination cases. Besides proactive measures,

159 As in Burkina Faso where labour inspectors play a direct role in dispute resolution processes by being involved in, and in charge of, conciliation proceedings (art. 320 of the Labour Code). In Senegal and Niger too, the Labour Code establishes the role, authority and competences of labour inspectors and labour controllers as pertaining to conciliation proceedings during labour disputes.

160 Art. 29, *Decreto con fuerza de ley* No. 2 and art. 486 of the Labour Code.

161 Art. 3, Law No. 1.610.

162 Art. 3 of the Labour Inspection Convention, 1947 (No. 81).

163 Labour Inspection Convention, 1947 (No. 81), art. 3 (2); Labour Inspection (Agriculture) Convention, 1969 (No. 129), art. 6 (3); Labour Inspection Recommendation, 1947 (No. 81), para. 8; 2022 ILO Guidelines on the general principles of labour inspection, para. 1.2.5 and para. 8.

164 See para. 72 of the ILO General Survey of the reports concerning the application of International Labour Standards on Labour Inspection.

165 Including in Colombia, Serbia, Armenia, Togo, Senegal, Niger, Burkina Faso and Sweden.

166 Including in Albania, Armenia, Belgium, Bulgaria and Montenegro.

this authority offers support to individuals in discrimination cases, where it provides information services and guidance, and has the competence to represent individuals in settlement negotiations and before the court. In Serbia, the ombuds office issues legally non-binding recommendations, often in employment discrimination disputes including those over age, motherhood (pregnancy), health conditions and minorities. The Human Rights Defender (ombuds office) in Armenia does not deal with employment rights for individual employers and employees at all, but rather focuses on regulatory gaps. In Belgium, the Institute for Gender Equality can take legal action in disputes arising from the application of laws aiming at guaranteeing gender equality and the well-being of workers.

In some cases, an ombuds office may be dedicated to a particular category of workers, as in Ireland, where the Office of the Ombudsman is accessible only to members of the defence forces to carry out investigations and make recommendations to the Minister of Defence, but this is not typical. In the West African countries studied,[167] the ombuds office typically acts as a facilitator in resolving conflicts between the public administration and citizens, receiving complaints relating to the functioning of state administrations, local authorities, public establishments and any other institution invested with a public service mission. In Senegal, going beyond this typical role, the ombuds office has helped resolve disputes with a labour or social security dimension, and regularly deals with conflicts between social partners or labour disputes within the public administration and enterprises.

▶ Box 8. Labour dispute resolution by autonomous bodies

Brazil

In Brazil, the Labour Prosecutor's Office is an autonomous body with a separate budget, and is not part of the judicial, legislative or executive arms. It is specialized in labour law and operates in coordination with the labour courts. The Office performs functions such as bringing actions before labour courts for protecting collective interests in the context of labour relations, intervening in cases in which there is a public interest, and monitoring the right to strike in essential activities. But it is the Office's role in out-of-court resolutions of labour disputes as a mediator that makes it interesting. Requests for mediation in collective disputes, for example, in the event of a strike or collective dismissal, can be made electronically. This service is free of charge. In addition, with unlawful labour acts, such as child labour, forced labour or non-compliance with occupational health and safety standards, the "conduct adjustment agreement" can be signed by the employer via the intermediation of the Office. The conduct adjustment agreement is an out-of-court procedure in which offenders of collective or diffuse interests in the labour field undertake to bring their conduct into line with the law, subject to the fines provided for in the agreement itself in the event of non-compliance. In all these cases, the parties cannot freely choose the mediator.

To ensure that the whole country has access to its services, the Labour Prosecutor's Office has a national office, 24 regional offices, and some 100 municipal offices across the country. As with Brazilian labour courts, all its staff have specialized knowledge and are selected through public competition.

Source: Labour Prosecutor's Office.

167 Burkina Faso, Niger, Senegal and Togo.

Conclusion

Several factors stand out in the functioning of judicial and non-judicial institutions. First, judicial mechanisms and alternative methods of dispute resolution have differing and unique advantages and disadvantages. On the one hand, the courts of law are vested with state authority to render final resolution decisions and enforce their decisions through judicial law enforcement mechanisms. On the other, the litigation process is adversarial, undermining cooperation and amicable settlement reached by the parties themselves. Equally, judicial proceedings may be costly, lengthy and complex, ultimately restricting access to justice for vulnerable groups of workers.

Pursuing an extra-judicial settlement—based on negotiation and consensus building—has the potential to give parties greater control than at present over the dispute settlement process. Indeed, these mechanisms are better suited to resolving collective interest disputes, as well as to some types of rights-based disputes, where the parties seek to preserve the employment relationship. Alternative disputes resolution procedures are less bureaucratic and formal, quicker, and more affordable. On the downside, ADR mechanisms are reliant on the parties' willingness to follow through with the settlement agreement, leading to low enforcement rates. There is a limited margin of negotiation and compromise for rights-based disputes, and a mandatory conciliation and mediation process may unnecessarily delay access to justice for rights violations.

Yet what is clear from the analysis of judicial and non-judicial institutions is that neither type is better on its own but the two complement one another rather than duplicate proceedings. Depending on how they are set up in different jurisdictions, this degree of complementarity is achieved to different extents. Ideally, ADR mechanisms serve to reduce the courts' caseload. Equally, courts must recognize and delineate between cases in which conciliation or mediation of the dispute is possible, and refer such cases to the appropriate forums when adversarial litigation is unnecessary. In this way, disputing parties will be able to benefit from the advantages of one or both systems, depending on their needs at a given time. Another important point in ensuring complementarity between institutions is to balance the provision of services to individual and collective disputes. As is well understood, with the individualization of work relations in recent times, the number of individual labour disputes around the world has been rising.[168] It is therefore important to strengthen the capacity of institutions to respond to this imbalance between individual and collective disputes.

As with legal and regulatory frameworks and the definitions of individual, collective, rights, and interest disputes, the definition of adjudication, negotiation, conciliation, mediation and arbitration may vary. What is mediation to one may be conciliation to another. Again, there is no one right or wrong way to define these mechanisms at the international level. What matters is that these institutional pathways are clearly defined in a given jurisdiction, and that it is clear to the users of the labour dispute prevention and resolution system which institutional pathway is best for them in the circumstances. In some situations, there may be multiple avenues for resolution, as in discrimination- or harassment-related disputes for which redress can be sought in multiple and sometime overlapping instances. It is important that these overlapping jurisdictions be clarified in law and practice, and that parties are made aware of the most appropriate institutional pathway to pursue. And, as seen in the examples above where a reference by the government is required for accessing a particular labour dispute resolution mechanism, it is best that such discretionary power be limited. As far as possible, parties should have free choice for accessing different institutions and the mechanisms they offer.

168 GB.344/INS/3/1.

As for judicial mechanisms, specialized labour courts in Brazil for example (see Box 3) are desirable given the level of expertise and professionalism that they introduce to the dispute prevention and resolution system. Still, as our analysis shows, ordinary civil courts are also often required to step in and play a complementary role. Similarly, with institutions offering ADR mechanisms, a specialization in labour matters is desirable. Whether these services are provided by the Ministry of Labour or through autonomous agencies is unimportant. What matters is that they are delivered in an efficient, speedy, fair, impartial, transparent and accessible manner that is responsive to the needs of the disputing parties, by independent and neutral professionals.

Chapter 4.

Procedural aspects of dispute prevention and resolution

The discussion in the previous sections demonstrates that effective access to labour justice requires clarity on the legal frameworks that define and categorize labour disputes, and on institutions' jurisdictional competence over the many different types of disputes that may arise. The next important step in accessing labour justice is the procedural requirements that parties may need to meet. Access to labour justice is understood to comprise not only formal access to labour dispute resolution institutions, but also access to procedural fairness during the dispute resolution process.[169] This section provides an overview of such procedural aspects in judicial and non-judicial institutions.

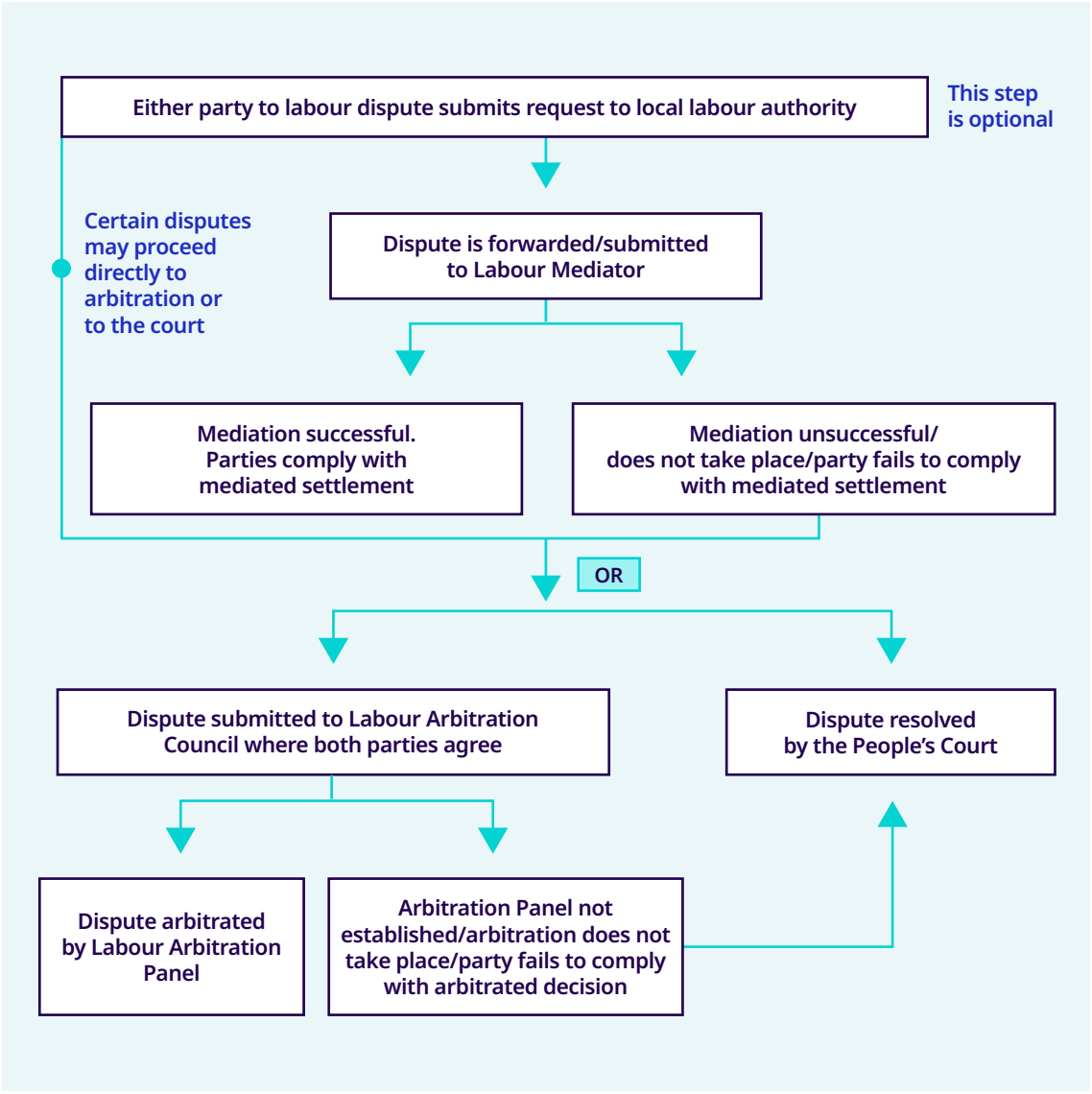
Procedural rules are a critical factor in determining (a) the *accessibility* of labour dispute resolution institutions (through considerations such as setting legal fees, possibility of legal aid, allowing for the participation of representative organizations, and determining the criteria for admissibility); (b) the *speed* of the process (through simplified and streamlined procedures, timelines set, and the efficient processing of applications); and (c) the *fairness* of the dispute resolution process (through clear rules of evidence and burden of proof, the possibility of appeal, and enforcement of final outcomes, whether judgments, awards or settlement agreements).

Different institutions—judicial and non-judicial—have evolved varying procedural rules for resolving labour disputes. For judicial institutions where labour disputes are handled by ordinary courts, these may be the general rules of civil procedure. That aside, from the perspective of access to labour justice, what matters is that these procedural rules and requirements *are not* so burdensome to parties that they create barriers to labour justice and that overall that they *are* tailored to facilitate access to justice.

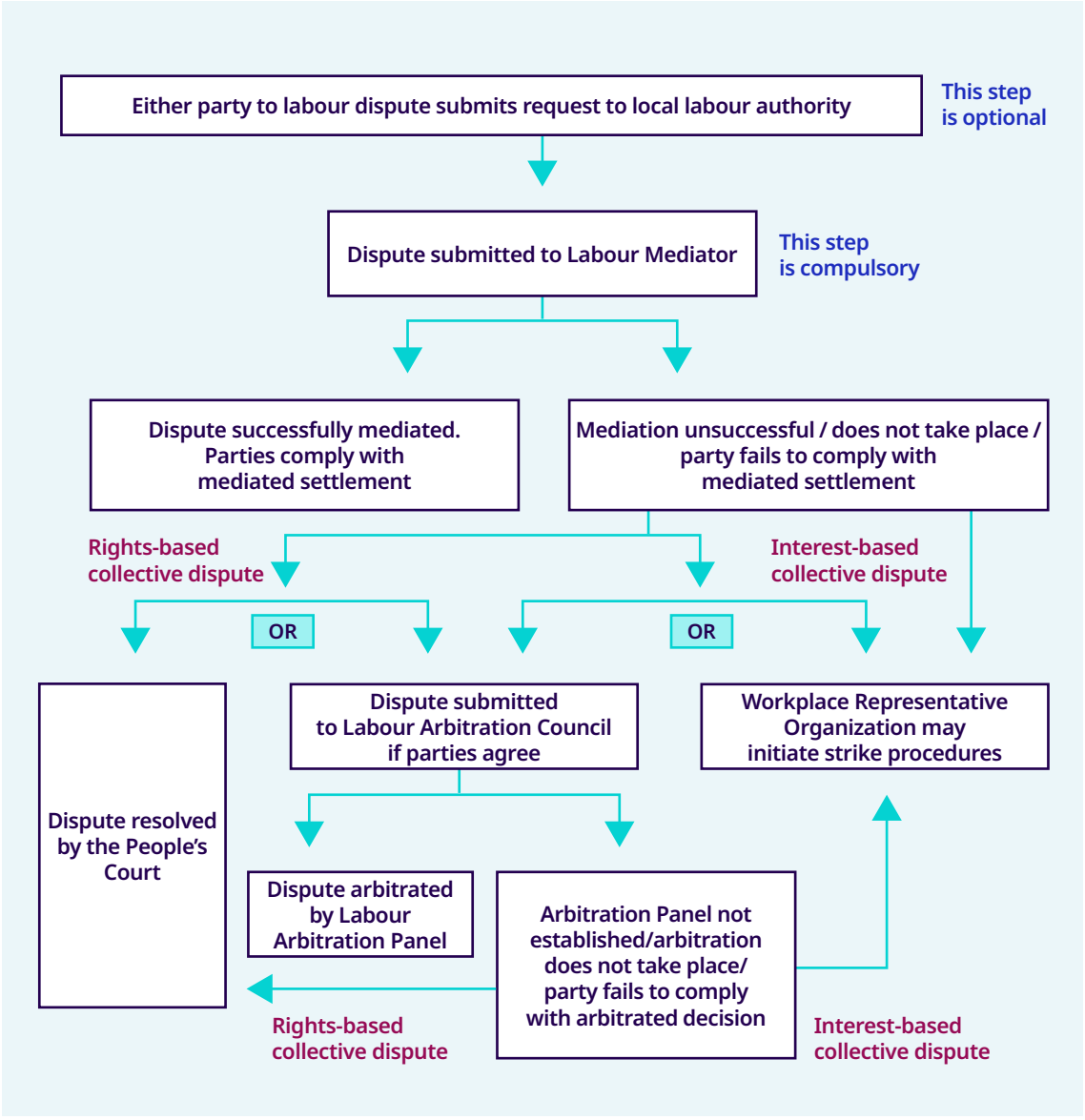
The Viet Nam country study provides a pictorial representation of what procedural steps may be required in individual (Figure 1) and collective (Figure 2) labour disputes.

169 ILO, *Access to labour justice: Judicial institutions and procedures in selected South American countries*.

▶ **Figure 1. Processes for resolving individual labour disputes in the Vietnamese Labour Code, 2019**



▶ **Figure 2. Processes for resolving individual labour disputes in the Vietnamese Labour Code, 2019**



Voluntarism in resolving labour disputes: Compulsory and voluntary procedures

A key factor in the effectiveness of labour dispute prevention and resolution is, as seen, the voluntary feature of non-judicial methods. The principle of voluntarism is set out in the Voluntary Conciliation and Arbitration Recommendation, 1951 (No. 92), which provides that "voluntary conciliation machinery, appropriate to national conditions, should be made available to assist in the prevention and settlement of industrial disputes between employers and workers".[170] Further, the Examination of Grievances Recommendation, 1967 (No. 130), provides that "any worker who, acting individually or jointly with other workers, considers that he has grounds for a grievance should have the right (a) to submit such grievance without suffering any prejudice whatsoever as a result; and (b) to have such grievance examined pursuant to an appropriate procedure".[171] Voluntarism means that disputing parties have a free choice to select the method of settlement of their dispute and maintain full control over the process and its outcome.[172]

It is necessary to distinguish between *compulsory arbitration*,[173] that is, arbitration that parties are subject to against their will and are ultimately bound by the arbitral award, and *compulsory conciliation*, to which parties are obliged to be subjected by law but are not ultimately bound to accept the outcome. While both systems conflict with the principle of voluntarism that calls for parties to be free to decide on the methods by which they choose to settle their disputes, the extent to which they do so is different. In the former, both the process and outcome are compulsorily imposed on the parties, but in the latter only the process is mandatory.[174] Generally, compulsory conciliation is required by law where the negotiating parties have exhausted their own efforts to reach an agreement and are in a stalemate. The purpose of such a legal requirement is to offer a cooling-off period, during which the parties can have a "last chance" to forge an amicable settlement.

Regarding international labour standards, conciliation and mediation mechanisms are undoubtedly likely to facilitate bargaining, and with mandatory conciliation, it is desirable to entrust the decision to open the conciliation procedure in collective disputes to a body independent of the parties to the dispute.[175] In addition, compulsory conciliation and mediation can be used to ensure that the parties to a labour dispute come together at the negotiating table. Compulsion may therefore be preferred where the labour relations system is not well developed and/or in cases where the parties are not used to negotiating with each other.[176]

170 Para. 1

171 Art. 2.

172 ILO, *Access to labour justice: A diagnostic tool*, p. 55.

173 Compulsory arbitration in the case that the parties have not reached agreement is generally contrary to the principles of collective bargaining. In the Committee's opinion, compulsory arbitration is only acceptable in certain specific circumstances, namely: (a) in essential services in the strict sense of the term, that is those the interruption of which would endanger the life, personal safety or health of the whole or part of the population; (b) in the case of disputes in the public service involving public servants engaged in the administration of the State; (c) when, after protracted and fruitless negotiations, it becomes obvious that the deadlock will not be broken without some initiative by the authorities; or (d) in the event of an acute crisis. However, voluntary arbitration accepted by both parties is always legitimate; see para. 247, 2012 General Survey.

174 "The European Committee of Social Rights (ECSR) is critical of compulsory processes of conciliation that take place prior to the exhaustion of proper means of social dialogue inter-partes. Under the ESC, there is a role for voluntary arbitration, even though negotiation-based approaches are much more frequently used in such disputes. The rationale for this preference for direct negotiation or conciliation is obvious: unlike arbitration, these methods respect the autonomy of the social partners. The *ECSR objects to the mandatory character of arbitration but not of conciliation or mediation"* [emphasis added]. In both cases, there is an impact on the recourse to strike action. Whereas mandatory arbitration tends to exclude recourse to strike, mandatory conciliation amounts to a kind of cooling-off period, suspending the ability to have recourse to strike action." Source: Aristea Koukiadaki, "Individual and collective dispute resolution systems – A comparative review" (ILO, 2020), pp. 21–23.

175 ILO Freedom of Association: Digest of decisions and principles of the Freedom of Association Committee of the Governing Body of the ILO Geneva, International Labour Office, Fifth (revised) edition, 2006, para. 789.

176 ILO, Labour legislation guidelines, Chapter IV. Substantive provisions of labour legislation: Settlement of collective labour disputes.

Yet compulsory arbitration processes that are binding on the disputing parties on referral by the government, or at the unilateral will of either party, are still practised in quite a few countries.[177] In other cases, arbitration may become de facto compulsory as a precondition to approach the judicial system. This is uniquely the case in China, where arbitration is a compulsory legal procedure before litigation. The Chinese Labour Dispute Arbitration Commission is authorized by the state to arbitrate and handle labour dispute cases in accordance with the law. After arbitration, if one of the parties refuses to accept the arbitration award and submits it to the court, the court is bound to accept it (legal grounds are not necessary in most cases). The arbitration procedure is compulsory to be able to access the court system, but the arbitral award is non-binding.[178]

Often, compulsory conciliation procedures are instituted for collective disputes but not for individual disputes,[179] or vice versa.[180] In some countries, compulsory conciliation applies to both individual and collective disputes.[181] In Chile for example, the Labour Inspectorate is empowered to conduct mandatory mediation in the particular case of the violation of fundamental rights in the workplace, and the Labour Inspectorate is obliged to report the facts to the competent court and take part in the labour trial. Before submitting the complaint, however, the Labour Inspectorate must conduct a mediation process to exhaust the possibilities of making amends for the violations.[182]

In some instances, parties are required to show that they have exhausted the possibilities of conciliation and/or mediation to access adjudicatory bodies, making the process of conciliation a compulsory procedure de facto (Box 9).[183] Serbia, for instance, has mandatory Workplace Mediation[184] in which allegations of mobbing[185] against co-employees or mid-level management have to be first submitted to workplace mediation. The request can be made by the employee, trade union, workers' representatives, or members of the committee on occupational safety and health, with the consent of the employee who cannot be exposed to any disciplinary measures or dismissal. In such cases, the employee must exhaust the possibilities of amicable resolution through workplace mediation before seeking redress in court, except where the charges are against the employer or against a natural person responsible for

177 India for example. however, the discretionary power of the Government to refer disputes to compulsory adjudication is due to be removed by the Industrial Relations Code, 2020. Also Burkina Faso and Niger (in the case of collective disputes after conciliation have proven totally or partially unsuccessful). In Panama, the arbitration will be mandatory for the employer in case—before or during a strike—the workers requests to the Labour Directorate to submit the conflict to an arbitrator court. Moreover, the arbitration will be mandatory in case the Labour Directorate orders it during a civil servant's strike (art. 452 of the Labour Code). In Togo, for collective labour dispute, when conciliation procedures have been unsuccessful, arbitration is not mandatory anymore as per the provisions of Law No. 2021-012 of 18 June 2021 on the Labour Code. Art. 313 provides that parties to the dispute can opt to bring the dispute before an arbitrator or arbitration board.

178 Regarding the effectiveness of the award, the award for labour disputes concerning labour remuneration, work-related injury medical expenses, economic compensation or compensation not exceeding 12-months of the local monthly minimum wage standard has a final effect. The arbitration award shall be final for the employer and only the employee can launch litigation. For such an award, if the employer applies for revocation of the arbitration, specific grounds are needed. For other awards without final effect, each party who is dissatisfied with the arbitration award can launch litigation. Labour Dispute Mediation and Arbitration Law of the PRC, art. 47 and art. 48.

179 For example, Lebanon, Malaysia, Armenia and, for collective-interest disputes, Albania.

180 Germany for instance, where conciliation is compulsory for individual disputes.

181 As in India, Burkina Faso, Niger, Argentina and South Africa.

182 Art. 468 of the Labour Code. The Labour Inspection Convention, 1947 (No. 81), art. 3 provides that "1. The functions of the system of labour inspection shall be: (a) to secure the enforcement of the legal provisions relating to conditions of work and the protection of workers while engaged in their work, such as provisions relating to hours, wages, safety, health and welfare, the employment of children and young persons, and other connected matters, in so far as such provisions are enforceable by labour inspectors; (b) to supply technical information and advice to employers and workers concerning the most effective means of complying with the legal provisions; (c) to bring to the notice of the competent authority defects or abuses not specifically covered by existing legal provisions. 2. *Any further duties which may be entrusted to labour inspectors shall not be such as to interfere with the effective discharge of their primary duties or to prejudice in any way the authority and impartiality which are necessary to inspectors in their relations with employers and workers"* [emphasis added].

183 For example in Lebanon, with collective disputes, if the parties are unable to reach a settlement through the Conciliation Board, the dispute can then be referred to the quasi-judicial Labour Arbitration Council for adjudication. However, before the parties can proceed, they must provide evidence to the Council that they have exhausted all possibilities for conciliation at the Ministry of Labour. This is also the case in Morocco with individual disputes.

184 Regulated by the Law on Prevention of Harassment at Workplace of 2010.

185 A form of violence at work.

the enterprise.[186] If mediation fails or the plaintiff is dissatisfied with the outcome, it is possible to initiate a court procedure.[187] In Brazil collective interest disputes can only be filed if both the disputing union(s) and the employer agree. If there is no agreement, the Labour Court considers the case non-admissible. In Mozambique, the Labour Code provides that access to justice is dependent on prior mediation, although the country's Constitutional Council has, in various lawsuits, declared this provision unconstitutional.

▶ Box 9. The interactions between judicial and non-judicial dispute resolution in Mexico

In **Mexico**, after the 2017 Constitutional reform and the 2019 reform to the Federal Labour Act, the labour justice system changed. Before the reforms, labour disputes were handled by conciliation and arbitration labour boards with a tripartite composition operating at federal and state levels according to their jurisdiction, and were part of the executive branch. Tripartite boards conducted conciliatory and arbitral functions, and the arbitral awards issued could be subject to review by a second-instance tribunal depending on the judicial branch. This change in the system was for numerous reasons, some examined by the ILO supervisory bodies, including the lack of impartiality of the federal and local conciliation and arbitration boards and the excessive length of their proceedings.[a]

The new labour justice system created specialized federal or local labour tribunals—with jurisdiction determined by law—forming part of the judicial branch. Before a judicial process is initiated, mandatory conciliation must be exhausted. By including mandatory conciliation, legislators sought to facilitate access to justice more expediently and to find solutions to disputes grounded in dialogue.[b]

The Federal Center for Labor Conciliation and Registration (*Centro Federal de Conciliación y Registro Laboral, CFCRL*) has the mandate to conduct mandatory conciliation under federal jurisdiction related to certain industries such as oil, textiles, energy, mining, automotive and chemical, among others while the state centres cover all other industries.[c] The CFCRL has a specialized division for the conciliation of collective disputes, and the labour tribunals may refer to this division the conciliation of collective matters even when a jurisdictional procedure is ongoing. The requirement to exhaust conciliation to access the tribunals has the following exceptions: discrimination in employment and occupation, sexual violence and harassment at work; designation of workers' beneficiaries; social security benefits; fundamental principles and rights at work and public liberties including freedom of association, collective bargaining, forced labour and child labour; disputes between trade unions for bargaining rights; and challenges to trade unions' bylaws. Exceptions apply, provided there is preliminary evidence offered by the claimant allowing the tribunal to reasonably presume that these rights are being infringed (art. 685 ter FLA). The parties may always conciliate the matter before escalating it to the courts.

186 Per art. 13.

187 In Argentina too, mediation is a mandatory procedure given that prior to initiating any judicial process, a mediation procedure must be carried out (art. 1, Law No. 26.589).

Conciliation and suspension of statutory limitation. The presentation of a request for conciliation will suspend the statutory limitation to file a complaint before the tribunal. The suspension will cease once the certificate of "no conciliation" has been issued. The suspension applies irrespective of whether the tribunal or conciliation centre has no competence over the issue. Also, the statutory limitation is suspended even if a claim is submitted before the tribunal without mandatory conciliation having been exhausted (and no exception applies). The tribunal will then submit the matter to the competent labour conciliation centre.

a See, for example, Case No. 2694, para. 34, in 2018. ILO. *387th Report of the Committee on Freedom of Association*. GB.334/INS/10.

b Molina Martínez, Sergio. 2022. "Los derechos sociales en el contexto del nuevo sistema de justicia laboral", in México in *Anuario de Derecho constitutional Latinoamericano, No. 28*.

c Among other functions including the registration of trade unions and collective bargaining agreements.

Processing applications for dispute resolution: Accessibility and speed

Procedural rules and regulations are key factors in ensuring that dispute resolution mechanisms are easy to access for parties as well as quick in delivering access to labour justice, as seen above. Factors such as admissibility of applications, how they are processed, at what cost (fees), with how much delay (timelines) and whether procedural requirements exist to exhaust grievance handling at enterprise level before a party approaches dispute resolution institutions—all greatly affect the ease with which parties can seek access to labour justice, and the time that takes. It is important that the procedural rules and practices around dispute prevention and resolution are streamlined.

Admissibility of claims

On admissibility of claims, five criteria are generally seen in countries: (a) prior attempts at amicable dispute resolution; (b) submission of claims in writing; (c) respect of the time limit for submission of claims; (d) adherence to a specified format for claims; and (e) representation by a recognized trade union.

Conciliation, mediation or other amicable attempts at dispute resolution are often mandatory before the dispute can be brought before a court. In such cases, criteria for admissibility (Figure 3) may take the form of a report or other written confirmation from the body performing the mandatory procedure that those remedies have been exhausted.[188] Another requirement is that the claim has been submitted in the prescribed time limit.[189] In some cases, different time limits are prescribed for different types of cases. For example, in Armenia, the general statutory limitation for individual disputes to be brought to court is three years, though there is no statutory limitation for unpaid salary claims—but there is a statutory limitation of two months for unlawful termination claims and claims against disciplinary sanctions and unilateral change of essential terms of employment. In Mexico, the general statutory limitation to submit a claim is one year, however for unlawful termination claims it is two months, and to claim justified termination (on the employer's or worker's side) it is one month. Claims for severance owing to work

188 In Ireland, the Labour Court will not investigate a "trade dispute" unless it receives a report from the WRC stating that it is satisfied that no further efforts on its part will advance the resolution of the dispute. This is also the case in Lebanon, India, Burkina Faso, China, Argentina and Mexico

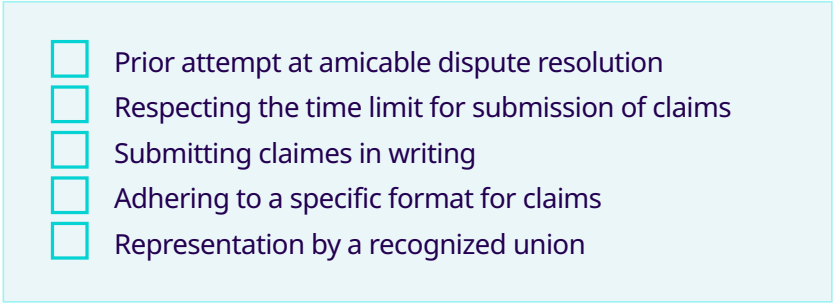
189 As in Armenia, Lebanon, Ireland, Mozambique, Chile and Mexico.

hazards, claims by beneficiaries for death originating in a work hazard, and claims to enforce a judgment from a tribunal have a statutory limitation for submitting a claim of two years.

Procedural rules may require that the application be submitted in a specified form (most often written form)[190] or that proper notice be given to the other party.[191] With collective disputes, it is often necessary that the application be submitted by a legally recognized trade union or an authorized representative of the workers,[192] and that the union has an active registration.[193]

Restrictions may be imposed to ensure that parties do not bring the case to two separate forums at the same time.[194] Procedures adopted by courts hearing labour cases may follow specific rules enacted for labour disputes, or general procedural rules, applicable to all cases falling under the jurisdiction of ordinary courts.[195] Some countries have special procedures intended to ensure the application of expertise in complex employment and labour legislation, particularly in first instance.[196] Other countries adopt general codes of civil procedures with adaptations to labour cases. In Serbia, for instance, the Civil Procedure Act has a section in which specific procedures are regulated, including those for "procedure in litigation from labour relations" (that is, procedure in litigation from individual labour disputes) and "procedure in litigation regarding collective agreements".

▶ **Figure 3. Criteria for the admissibility of claims**



190 In Brazil, with collective disputes, the request before the Labour Court must be in writing (art. 856 of the Labour Code), but with individual disputes, the complaint to the labour courts can be in writing or verbal (art. 840). See also Lebanon, Bangladesh, Sweden and Kenya where proper form is necessary for admissibility. In Ireland, a complaint should be presented to the WRC by "giving notice thereof in writing". In Montenegro, art. 53 of the Law on Peaceful Resolution of Labour Disputes stipulates that the procedure for peaceful resolution of a labour dispute is initiated by submitting a proposal for peaceful resolution of a labour dispute to the Agency for Peaceful Resolution of Labour Disputes, in writing directly, by mail or email.

191 As in Lebanon for example.

192 Including in Lebanon, Viet Nam and Canada. For instance, in Canada unions have rights of carriage of individual disputes (grievances). There is no general common practice. Each union will have its own process for determining which grievances proceed to arbitration. Some unions take forward every grievance by an individual employee. Most have some filtering mechanism to decide whether the grievance is to proceed to arbitration. For example, some unions will require that any potential grievance be submitted to a union meeting to be decided on by the membership as to whether it will proceed to arbitration at the expense of the union; some unions will take legal advise on the likely prospects of success of the grievance before proceeding to arbitration. In some circumstances, unionized workers have a remedy if a union fails or refuses to pursue a grievance on their behalf. They may claim that the union's duty of fair representation to them has been violated and they may lodge a claim with the labour relations board that has jurisdiction.

193 With collective disputes for mediation by the Ministry of Labour and Employment in Brazil.

194 In Viet Nam for example, where a case is referred for arbitration, the parties cannot simultaneously request resolution of the issue by the court.

195 See ILO, *Access to labour justice: Judicial institutions and procedures in selected South American countries*, 2021.

196 Colombia for instance.

Case management systems

To process applications once procedural requirements have been met, a number of countries have digital case management (DCM) systems in judicial, quasi-judicial and non-judicial institutions.[197] The functions of such DCM systems vary. In Armenia for instance, the DCM system in the judicial sphere is limited to automatically assigning cases and acting as an information platform for providing public information about the case (such as hearing dates and court rulings). In some countries, paper-based filing systems and physical case files can lead to delays, inefficiencies and errors in case management, with case files sometimes getting lost.[198] Depending on the size of the country and nature of its organization, complaints may also be processed centrally before being assigned to particular officers or institutions for dispute resolution.[199] A few country studies report the use of e-filing systems to submit claims or complaints electronically.[200] Digital systems may also be in place to make it easier for parties to request mediation processes.[201] In some countries, standard operating procedures are put in place to manage the processing of applications.[202]

Timelines

A number of jurisdictions specify periods in which applications must be presented by claimants, as discussed, but also time limits in which complaints must be heard and addressed, to ensure that dispute resolution is carried out relatively quickly (Table 1). This time limit may take the form of a period in which parties may need to be summoned to court[203] or convened for conciliation.[204] In most jurisdictions, the number of days for rendering a decision, whether judgment or arbitral award or preparing a report of the conciliation/mediation proceedings, is specified,[205] while in others the amount of time in which a case must be tried may be specified.[206] The time limits prescribed may also envisage the period in which an arbitration panel is set up or a judge assigned to a case,[207] or the period in which a conciliation or mediation procedure is required to be completed.[208] In some cases, priority may be given to certain types of labour disputes. In Germany for example, labour courts are obliged to prioritize hearings of complaints against dismissals, with the conciliation hearing in these cases to take place in two weeks of the filing of the lawsuit. Yet despite these provisions, several country studies report that there tend to be delays beyond the time limits specified in law.[209]

197 Including Ireland, Brazil, North Macedonia, Argentina, Chile, Colombia, Panama, Canada and Morocco.

198 As in Lebanon.

199 In Ireland, complaints are initially processed in the WRC's offices in Carlow before being sent forward to an adjudication officer and a hearing date assigned.

200 Some are the Republic of Korea, Ireland and Malaysia.

201 In Brazil, mediation on collective disputes carried out by the Ministry of Labour and Employment can be requested online through a digital system called "Mediador" (Mediator), and the meetings may be held through electronic videoconference platforms (SRT Circular Letter SEI no. 1.376/2020/ME). The Labour Public Prosecutor's Office in Brazil also receives and processes mediation requests electronically. The online mediation request must include information about the conflict, the claimant, the respondent and documents.

202 Including Viet Nam, Mozambique, Argentina, Chile and Colombia.

203 For example, Burkina Faso, Niger, Senegal, Togo, Kenya and Argentina.

204 For instance, Niger, Senegal and Togo.

205 As in Niger, Burkina Faso, India, Malaysia, Lebanon, Togo, Viet Nam, Serbia, Mozambique, Brazil, Montenegro and Bangladesh.

206 As in Armenia, China and Albania (in the last of which timelines are provided for mediation and conciliation procedures).

207 In Viet Nam for example.

208 For instance, in North Macedonia, Serbia, Montenegro and Argentina.

209 Including those for Armenia, Brazil, Malaysia and India.

▶ **Table 1. Average number of days provided for institutions (both judicial and nonjudicial) to render a decision**

0-15 days	15-30 days	30-90 days
Burkina Faso, Niger, Senegal, Mozambique, Romania, Chile, Panama	Vietnam, Brazil, North Macedonia, Montenegro	Lebanon, Malaysia, India, Serbia

Costs and fees

A trend in most countries studied is that non-judicial institutions providing conciliation, mediation and arbitration services are available to parties free of charge (Table 2).[210] In Niger, not only are these services made available free of charge to parties, but travel expenses, lost wages and salaries are also funded by the state. Arrangements may sometimes require employers to pay a certain fee but not workers, though the latter is not commonly seen.[211] In some instances, quasi-judicial bodies providing adjudication services are also available free of charge.[212] With judicial institutions, most often the usual court fees and/or stamp duty apply to labour disputes.[213] In some cases, a reduced court fee may be applicable in labour disputes,[214] and judicial proceedings in labour disputes may even be free of charge.[215]

▶ **Table 2. Access to labour dispute resolution institutions free of charge**

Judicial institutions	Quasi-judicial institutions	Non-judicial institutions
Bangladesh, Bulgaria, Burkina Faso, Colombia, Niger, Senegal, South Africa, Sweden, Togo	Ireland, Malaysia, Republic of Korea, South Africa	Albania (collective labour disputes only), Brazil (mediation only), Burkina Faso, Colombia, Niger, North Macedonia, Panama, Republic of Korea, Senegal, Serbia, South Africa, Togo, Viet Nam

Some jurisdictions specify that fees may be waived if they might cause undue hardship to the party[216] or simply make provisions to prevent financial hardship to workers. In Armenia for instance, which has a stamp duty for filing the claim, employees are relieved of the stamp duty for salary-related claims, and benefit from a very small duty to be paid for non-monetary claims. Similarly in Viet Nam, provision is made for workers to be eligible for the full remission of court fees if they file lawsuits to request payment of salaries, job loss allowance, severance allowance, social insurance contribution, compensation for

210 Including Albania, Ireland, Republic of Korea, Burkina Faso, Niger, Senegal, Togo, Viet Nam, Serbia, North Macedonia, Colombia, Panama and South Africa. In Brazil this applies only to mediation, not to arbitration.

211 In non-judicial conciliation in Argentina, for example, the procedure is free for the worker (art. 3, Law No. 24.635). Although the employer must pay a fee of 2,510 Argentine pesos if the parties do not achieve an agreement and 27,610 Argentine pesos if they achieve an agreement. In Chile, for procedures before arbitration courts, the fee is paid by fiscal funds except with large companies, in which the employer must pay the fee (art. 392 of the Labour Code).

212 As in Ireland (no fees are associated with the presentation of complaints to the WRC nor with the presentation of appeals to the Labour Court), the Republic of Korea (no fees are charged for filing for relief with the Labour Commission), Malaysia (no fees are charged to access the labour court) and South Africa (the services of the CCMA and bargaining councils are free).

213 For example, Albania, Ireland, Republic of Korea, Serbia, Mozambique, Kenya and Canada.

214 Germany for instance.

215 Including Burkina Faso, Niger, Senegal, Togo, Colombia, Bulgaria, Bangladesh, Sweden and South Africa.

216 As in Serbia, Mozambique and Brazil.

occupational safety and health costs, settlement of claims for damages, or compensation for unlawful dismissal or labour contract termination.

In addition to fees, the costs that courts may impose on the losing party may also serve as a barrier or disincentive to parties to access justice.[217] In Germany, contrary to the general rules, each party bears his or her own costs of a barrister in the procedure of first instance. The law seeks to avoid the situation that employees do not file cases because they fear to bear all the costs if they lose the case (the general rule in other jurisdictions). Other than fees and costs, a penalty or fine may sometimes be charged to parties is they fail to appear for dispute resolution proceedings.[218]

Finally, a procedural requirement in a few jurisdictions to access dispute resolution mechanisms is to exhaust grievance-handling procedures at enterprise level.[219]

Procedural fairness in resolving disputes

An equally important aspect of procedural rules is their role in ensuring fairness in dispute prevention and resolution. The procedures should ensure that the outcomes of the dispute resolution process are fair, and that those outcomes are reached, and *seen* to be reached, in a fair way.[220] This is a broad notion that encompasses facets of dispute prevention and resolution beyond those covered in this report, but a few legal considerations are relevant here in ensuring fairness in the procedural aspects of dispute resolution. These include the availability of legal assistance and representation; rules on burden of proof; the right to appeal to a fair and impartial third party; and ensuring the proper and prompt enforcement of judgments or awards, or giving effect to settlement agreements (as the case may be).

Representation in proceedings

Most cases before judicial institutions require the presence of qualified lawyers or barristers,[221] with exceptions (Figure 4). For instance in Albania, the list of legal representatives in court is very liberal, including advocates, spouses, linear descendants and ascendants, and siblings; and legal graduates and other persons whom the court allows to act as representatives in a case.[222]

Another example is Germany, where the parties may act without representation before labour courts, but may also be represented by barristers or—for employees—by trade union officials or representatives of an independent professional association of employees when the employee is a member of that association. Employers may be represented by, instead of a barrister, an employee of their company (such as a lawyer of the human resources department), a representative of an employers' association, a family member of the employer, or a person who has passed both state exams in law and has therefore the capacity to become a judge. But before the state labour courts and the Federal Labour Court,

217 As in Ireland.

218 In Ireland, if the appellant does not appear before the adjudication officer in the WRC or Labour Court, they must pay €300, which is refundable if the failure to attend was due to a "good cause".

219 For example, Ireland (in some cases), India (but this is being removed by the new Industrial Relations Code 2020 that is to be implemented), Brazil (in a few exceptional circumstances) and Kenya.

220 ILO, *Access to labour justice: A diagnostic tool*, p. 28.

221 Including Ireland, Serbia, Chile, Colombia and Panama.

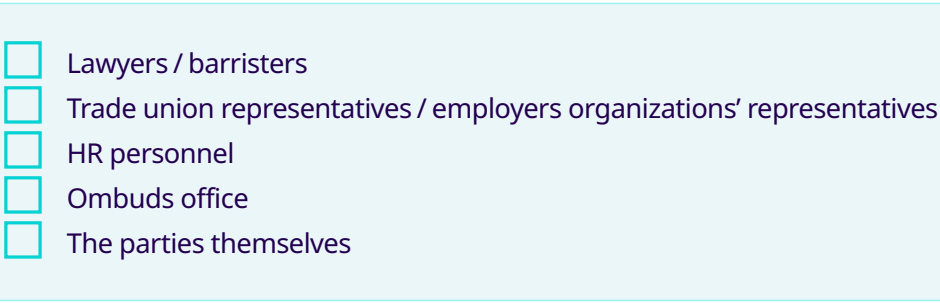
222 Yet the following cannot serve as representatives of parties in Albania: (a) persons that have not reached 18 years of age; (b) persons who have had their capacity to act, legally removed; (c) advocates/licensed private lawyers during suspension from legal practice; and (d) judges and prosecutors.

representation is more restricted—parties may only be represented by a barrister or an official of the trade union or employers' association to which the party belongs.[223]

In proceedings before non-judicial institutions, most often, representation may be provided by the parties themselves, lawyers, trade union representatives, human resources consultants or other recognized persons.[224] In Mexico, the centres for conciliation may provide assistance in drafting the petition for conciliation. Workers filing the petition may be accompanied, but not represented in the conciliation process, by an ombudsperson, lawyer or trade union representative. In the specific case of sexual harassment, discrimination or other acts of violence where there is an imminent risk of revictimization, the conciliator takes appropriate measures to avoid the alleged perpetrator from meeting the victim. A representative of the victim will act on his or her behalf.[225] In Malaysia in dismissal disputes,[226] representation of either the employer or employee by an advocate or solicitor is specifically excluded. The rationale for this is the concern that a lawyer's presence could bring an adversarial element to the conciliation process geared towards joint problem solving.[227]

There is no universal approach to this matter, although the exclusion of lawyers from conciliation processes is uncommon.[228] In some instances, a representative attending a non-judicial proceeding may be required to be authorized in writing by the party.[229] Legal representation before quasi-judicial institutions can be more flexible, allowing representation by either the parties themselves, a lawyer, a trade union or employer's association official, or any other permitted person.[230] Some country studies provide details of availability of legal assistance to parties to a labour dispute.[231]

▶ **Figure 4. Legal representation**



223 Other jurisdiction that are more flexible about representation before courts include Burkina Faso, Niger, Senegal, Togo, Argentina, Croatia and Bulgaria. In Brazil, employees and employers may file a lawsuit before the Labour Court without the legal assistance of a lawyer (Labour Code, art. 791). However, the lawsuit for the approval of an out-of-court agreement requires the representation of the parties by a lawyer (Labour Code, art. 855-B). In Canada, at arbitration, anyone may represent a party.

224 As in Malaysia, Burkina Faso, Niger, Senegal, Togo, Serbia, Brazil, Montenegro, Argentina, Chile, Colombia, Panama and Bulgaria.

225 See art. 684-E of the Federal Labour Act.

226 Section 20 of the Industrial Relations Act, as amended by the Industrial Relations (Amendment) Act 2020.

227 Michael Gay and Craig Bosch, Report on review of Malaysia's dispute resolution system, Geneva: International Labour Office, 2020, pp. 34–35. A similar provision for conciliation is made in India under section 36(3) of the IDA.

228 Gay and Bosch, footnote 106: "In conciliation proceedings in South Africa's CCMA, a party may appear in person or only be represented by a director or employee of that party or any member, office bearer or official of that party's registered trade union or registered employer's organization".

229 Including Bulgaria, Senegal, Niger and Burkina Faso.

230 For example, Ireland, Lebanon, Malaysia, India and South Africa.

231 For instance, Lebanon, Republic of Korea, Armenia and Viet Nam.

The burden of proof

Rules on the burden of proof tend to be extremely similar across most of the jurisdictions observed. The standard rule is that the claimant or plaintiff must meet the burden of proof except that in cases of unfair dismissal or disciplinary action, the burden of proving the fairness of the dismissal is reversed and placed on the employer (Table 3).[232] Other exceptions in which the burden of proof is placed on the employer include cases of penalization for having made a "protected disclosure"; where there is a presumption that the alleged penalization is a result of having made such a disclosure;[233] cases of discrimination, where a claimant merely has to show a prima facie case before the burden shifts to the employer to establish that there has been no discrimination;[234] cases of unilateral change of essential terms of employment;[235] cases of "unfair labour practices";[236] cases of harassment at work;[237] termination of employment during pregnancy or following maternity leave;[238] cases of work-related injuries and occupational diseases;[239] claims of wages in arrears;[240] cases on the protection of whistle blowers;[241] cases of violation of the fundamental rights of workers;[242] freedom of association disputes;[243] or generally cases where the evidence is under the management and retention of employers.[244]

▶ Table 3. Reversal of the burden of proof

Complete reversal of burden of proof in labour disputes	Reversal of Burden of proof in employment termination cases	Reversal of Burden of proof in discrimination related cases	Reversal of Burden when "evidence is with the management"
Bolivia, Romania	Albania, Armenia, Australia, Burkina Faso, Canada, Chile, China, Croatia, Germany, Ireland, Kenya, Korea, Montenegro, Morocco, Mozambique, Niger, Senegal, South Africa, Vietnam	Albania, Bulgaria, Croatia, Ireland, Korea, Lebanon, Serbia, South Africa, Sweden	Canada, China Brazil, Vietnam

232 As in Albania, Ireland, Germany, Republic of Korea, Burkina Faso, Niger, Senegal, Armenia, Viet Nam, Mozambique, Montenegro, Kenya, Chile, Croatia, Canada, China, Morocco, South Africa and Australia. In Lebanon, however, an employee claiming that they were unfairly dismissed must provide evidence to show that their dismissal was unjustified or discriminatory. Once the party making the claim has presented their evidence, the burden of proof may shift to the other party to provide evidence to contradict or rebut the claims made by the first party.

233 As in Ireland.

234 Including in Albania, Sweden, Ireland, Lebanon, Serbia, Croatia, Bulgaria and South Africa. In the Republic of Korea (under art. 30 of the Equal Employment Opportunity and Work-family Balance Assistance Act), in cases where disputes arise relating to the Act, the burden of proof rests with the employer to provide a resolution.

235 As in Armenia and Mozambique.

236 As in Canada.

237 In Serbia for instance.

238 In Albania for example, when the employer terminates the employment contract of the employee during pregnancy or when she is back to work from maternity leave, according to art. 105/a of the Labour Code, the employer has the obligation to prove that the reason for dismissal was neither the pregnancy nor the childbirth. Should the employer not prove that the contract termination was due to other reasons, the termination will be invalid.

239 In China for instance, it is extremely difficult for the employee to provide evidence proving that it is a work-related injury, and the employer has the legal responsibility to provide working conditions that meet the safety requirements. See Regulation on Work-Related Injury Insurance, art. 19, and Measures for the Ascertainment of Work-related Injuries, art. 14.

240 Again, in China, employers are obliged to keep the evidence of wages paid, and it is generally impossible for workers to obtain evidence of unpaid wages. When the employee presents evidence that he or she has fulfilled his labour obligations and claims to claim wages in arrears, if the employer cannot provide evidence to prove that wages have been paid, the fact that wages have not been paid should be confirmed and the claim of the employee should be supported, see Provisional Regulations on Payment of Wages, art. 6, para. 3.

241 As in Serbia among others.

242 In Chile for example, in these cases the burden of proof is not reversed but merely lowered for the worker to be able to prove the violation.

243 As in South Africa, where there is only an evidentiary onus on the applicant, per section 10 Labour Relations Act.

244 Including in Viet Nam, Brazil, Canada and China.

Some West African jurisdictions specifically provide for proof to be submitted by or requested from public officials, such as labour inspectors and controllers, as the labour code gives them the authority, during the course of their inspections and controls, to produce reports and other documentation with value of proof until it is proven otherwise.[245] In some instances, if an employer fails to maintain records required by law, the onus of proving compliance with such a law lies with the employer.[246] But in cases where criminal complaints over labour disputes may be made, a high standard of proof is introduced.[247]

Right to appeal

Provisions for appeal vary depending on the institution issuing the judgment or award that is appealed. Decisions and awards rendered by genuine quasi-judicial institutions (as defined in this report) are subject to limited judicial review. The grounds for review or appeal in such cases tend to be limited to appeal on a point of law.[248] In some cases the language used to describe cases for review or appeal are: "standard of reasonableness";[249] "exceptional circumstances";[250] "matters of general public importance";[251] and "abuse of power".[252] A few countries provide for the annulment of arbitral awards on the basis that the arbitrator issued the award beyond the established time limit or on matters not submitted to arbitration.[253] In some countries, even though grounds for review or appeal of quasi-judicial institutions are limited in law, in practice we see appeals being filed in higher judicial bodies on other legal grounds.[254]

In judicial proceedings for labour dispute resolution, provisions for appeal tend to be more liberal.[255] In some jurisdictions however, the question of whether an appeal lies to a higher court may depend on the sum of money involved in the claim. For instance in Burkina Faso, when the claim does not exceed 200,000 CFA francs,[256] decisions of the labour court are final and without appeal, except for a dispute on the competence of the court. Above this amount, labour court decisions can be appealed before the territorially competent Court of Appeal.

245 As in Niger, Senegal and Togo.

246 In, for example, Ireland and Montenegro. (In the latter, in a dispute over working hours, where the employer fails to keep the records in accordance with the law, the burden of proof rests with the employer.)

247 In Malaysia for instance; see Gay and Bosch.

248 Seen in, among others, Ireland, Germany (in Germany, in a case of arbitration to settle labour disputes between works councils and employers), Lebanon, Niger, Brazil, Montenegro, Australia and South Africa. In very limited circumstances, the Labour Court in South Africa has the power to hear an appeal against an arbitration award of the CCMA. There are two instances in which an arbitration award may be appealed against in South Africa: where the award is about the interpretation or application of a collective agreement (section 24 of the Labour Relations Act) and where the award concerns an unfair discrimination dispute in terms of the Employment Equity Act, 55 of 1998 (section 10).

249 In Canada, review applications of labour board and arbitrator decisions are evaluated on the standard of reasonableness. If the award is within the range of reasonable decisions, it will be upheld, unless there is an error of law, and a correctness standard applies.

250 As in Ireland.

251 As in Ireland.

252 As in Niger.

253 Including Argentina and Montenegro.

254 For instance, in India under art. 136, the Constitution of India gives power to the Supreme Court to grant special permission or leave to an aggrieved party to appeal against an order passed in any of the lower courts or tribunals in India. This means that an individual takes special permission to be heard in appeal against any high court/tribunal verdict. In practice therefore, awards of labour courts and industrial tribunals come to be challenged in this manner and under the "writ" jurisdiction of High Courts (Constitution, art. 226).

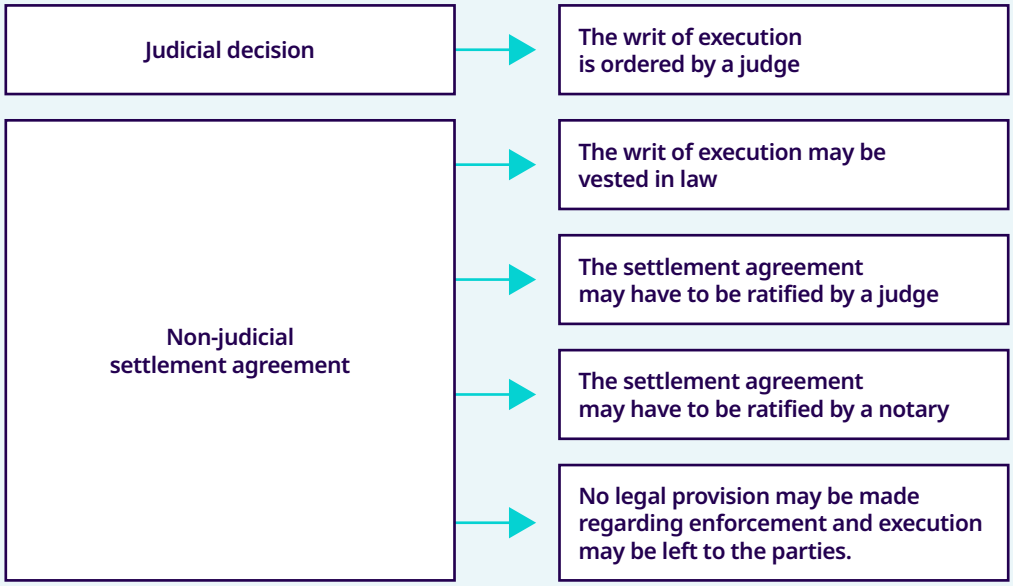
255 As seen in Albania, Germany, Republic of Korea, Armenia, Viet Nam, Serbia, Mozambique, Brazil and Kenya.

256 The same holds true in Niger but for claims that do not exceed 100,000 CFA francs and in Senegal and Togo when the claim does not exceed ten times the guaranteed minimum wage.

Enforcement

Finally, the enforcement of labour court judgments and the decisions rendered by quasi-judicial institutions tend to be enforceable as per the usual law of civil procedure.[257] In some countries, criminal penalties may be imposed if a party fails to comply with an order.[258] Enforcement is most often carried out by civil courts (Figure 5), but in Brazil, the enforcement of instruments—such as arbitral awards, out-of-court agreements approved by the Labour Court, conciliation agreements signed before the Prior Conciliation Commissions, and the "conduct adjustment agreements" signed before the Labour Public Attorney's Office—must be processed before the Labour Court.[259] In some West African jurisdictions,[260] provisional execution may be ordered on condition that security is provided for enforcing orders to pay a sum of money above a certain threshold.

▶ **Figure 5. The enforcement of decisions in judicial and non-judicial institutions**



257 Including in Kenya, Viet Nam, Armenia, Republic of Korea, Ireland, Germany and Canada.

258 In the Republic of Korea for example, if an employer fails to comply with the order of the Labour Commission even after the remedy order is finalized, they may be subject to criminal penalties under relevant laws. In contrast, in cases of a remedy order for unfair dismissal or unfair discipline, the Commission may impose a performance penalty of up to 30 million Korean won four times within a two-year period, even before such a remedy order is finalized, if the employer fails to comply with it. In Lebanon, the Penal Code punishes any employer or employee who refuses to implement or who delays the execution of any decision issued by the Labour Arbitration Council, with imprisonment of between two months and one year. In addition, the Decree on the Authorities of Arbitration Labour Councils subjects the defaulting party to a coercive fine.

259 Labour courts are also empowered to enforce their decisions in Mozambique.

260 Including Burkina Faso, Senegal and Togo.

In some of the jurisdictions studied, enforcement of out-of-court settlement agreements is more uncertain. While some labour codes provide that the results of conciliation, mediation or arbitration procedures are equivalent to an enforceable judgment for all legal purposes,[261] in others, conciliation or mediation agreements or arbitral awards are not legally vested with a writ of execution, and their implementation remains largely at the will of the signatory parties.[262]

Conclusion

Procedural rules and regulations are clearly closely tied to questions of access, speed and fairness in the labour dispute resolution process. Some good practices are seen in the countries examined, including access to labour justice at no cost to parties, the provision of legal aid, opportunities for representation by trade unions and employers' organizations, the reversal of the burden of proof in cases where workers do not have access to evidence, as well as good case management practices. Clarity and publicity on legal and procedural requirements in the law are critical in ensuring effective access to labour justice.

A key factor in the design of labour dispute resolution procedures is the extent to which they encourage voluntarism and consensus seeking on the part of employers and workers to support harmonious employment and industrial relations. The principle of voluntarism is prominent in non-judicial mechanisms for labour dispute resolution, with compulsory conciliation or mediation proceedings seen as a "last chance" for amicable settlement before the parties resort to adversarial mechanisms such as litigation. Regulations exist in different jurisdictions for exhausting internal procedures at enterprise level. Still, most jurisdictions require some form of proof that attempts at amicable resolution were made before judicial proceedings can be launched. Compulsary "interest arbitration" of public sector disputes is recurrent in common law jurisdictions, but is generally not permissible in civil law legal systems where only voluntary arbitration may serve as a pre-trial filter.

A majority of the jurisdictions studied offer state-based services for conciliation, mediation or arbitration free of charge, although there is some uncertainty over enforcing non-judicial settlements in some jurisdictions. These issues direct attention to the earlier point on the complementarity between judicial and non-judicial institutions, and hence procedures. Despite the many benefits of ADR methods, in a number of jurisdictions, parties continue to access courts where the trust in judicial institutions and in the fairness of their procedures runs high, and the decisions are final. Better coordination between judicial and non-judicial institutions and their procedures remains critical to ensuring access to appropriate forums for access to labour justice.

261 Including Panama, Colombia, Chile, Argentina, Mozambique and Serbia.

262 Such as Albania.

Chapter 5.

Conclusion

This comparative study has demonstrated the diversity of legal and regulatory models governing individual and collective labour dispute resolution in countries across the globe. In some senses, these models are very different: some countries provide for adjudication that is heavily reliant on the court system, while others provide only for quasi-judicial institutions. Many countries do not provide for arbitration of labour disputes at all, while others provide for compulsory and/or advisory arbitration. Some focus their efforts more on non-judicial mechanisms, while others are litigation-centric. Only a few countries provide for the strong involvement of social partners in both quasi-judicial and non-judicial institutions while most systems examined generally allow limited or no participation in the judicial ones.

Yet despite these big-picture differences, it seems that certain basic approaches towards labour dispute resolution across the countries studied have more similarities than differences.

For a start, most jurisdictions distinguish between individual and collective labour disputes on similar grounds: the nature of the dispute (rights-based versus interest-based), the parties to the dispute (single versus group of workers or employers) or the source of the rights over which there is a dispute (the individual employment relationship versus collective agreements). The vast majority of the countries studied define the scope of applicability of their labour laws—and thus access to labour dispute resolution institutions—on the basis of the employment relationship. The material scope of disputes, that is, the subject-matter of individual and collective disputes, also overlaps widely, with issues around dismissals, payment of wages and the representativeness and recognition of trade unions cited in many country studies as common. Most countries provide for access to judicial institutions in rights disputes, and for ADR-based mechanisms in collective interest disputes.

Cross-country similarities are close for procedures in labour dispute resolution. A number of countries provide for case management systems, increasingly digital, and there is a high uptake of technology to facilitate parties' attendance at hearings, too. Many countries provide for labour dispute resolution services free of charge or make provision for legal aid to parties who might otherwise be unable to afford it. Similarly, many countries provide for representation of the parties not just by lawyers, but also by employers and workers' representative organizations. Legal standards and rules on the burden of proof and the enforcement of judgments and awards also share similarities. These patterns demonstrate how, even though systems might be set up in different ways across countries, there is still common ground on how labour dispute prevention and resolution systems should be governed to ensure effective functioning.

Clarity is critically important in the legal, institutional and procedural frameworks governing labour dispute prevention and resolution systems, and that clarity must be apparent to legal practitioners and to users; in how individual and collective disputes are defined; in the institutional pathways available for resolving individual and collective disputes; in what the competence and jurisdiction of various institutions are; and in the procedural requirements to be met. Beyond that, these governance frameworks must be inclusive so that they do not inadvertently exclude certain types of disputes or parties from the labour dispute prevention

and resolution system. Narrow definitions, or systems that leave discretion to government authorities on the disputes to bring to adjudication, can easily become exclusionary. It is vital that the parties to the dispute to have an informed choice and to be in control of how and when to resolve their disputes.

In line with international labour standards, it is important that labour dispute prevention and resolution systems encourage and facilitate the process of collective bargaining and of social dialogue more generally. ADR-based non-judicial mechanisms can bolster the principle of voluntarism in labour dispute resolution processes and are important in filtering cases that can be resolved between the parties themselves, before these cases are escalated to judicial institutions. This complementarity between judicial and non-judicial institutions is crucial to maintain the fine balance between encouraging voluntarism and ensuring access to adjudicative mechanisms where they are necessary. As this report has stressed, a certain level of specialization of judicial and quasi-judicial bodies is critical to ensure outcomes to the parties that are just and in line with labour laws, and that also serve to harmonize labour jurisprudence itself—steps on the way to ensuring *equal access to labour justice for all*.

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